

Voice or Veto? Participatory Procedure in Local Government

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Nowhere does American law demand more public participation than in local government. This reflects a powerful intuition that the government closest to the people should be the most open to them. Over the last century, the law has hardened this ideal into a thick machinery of mandated hearings and comment periods. This is especially true in land use. There, a proposal to develop a single apartment building can trigger more opportunities for public input and local veto than a major federal rule. This machinery is now under siege. Proponents of the “abundance” movement blame participatory procedure for a government that cannot build, prompting state legislatures to preempt local process wholesale. Yet the debate proceeds with almost no systematic evidence of what happens inside local meetings.

This Article supplies that evidence. It introduces one of the largest datasets on local democratic participation to date, including over 25,000 city council meeting transcripts across 115 California cities (2015–2024), with over 80,000 commenters linked to voter and property records. It uses that data to evaluate core theories of participation’s value and compare that value to theorized mechanisms of its costs. The results discipline both sides. Participants are drawn from a narrow and demographically skewed population and often make unsubstantiated allegations. However, a significant proportion of comments also surface potentially useful facts that are missing from staff records, even if direct council engagement with these comments is rare. And the costs run through quieter channels than a direct “veto” implies. While outright denial is rare, organized opposition is closely tied to long delays and negotiation of additional, potentially prohibitive conditions on development projects.

Voice and veto need not be so intertwined. Current law mandates participation most forcefully at the downstream adjudicative project approval stage, where the evidence suggests it does the most damage and the least democratic work. I argue that deliberative engagement belongs upstream, helping shape the rules and plans that govern projects in the aggregate, while downstream application of those rules should be made ministerial. The Article shows why exactions scrutiny under *Nollan*, *Dolan*, and *Sheetz* should not police that boundary, and why well-designed state preemption should instead.

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Appendix available at: <https://www.oliviahmartin.com/files/voice-or-veto-appendix.pdf>.

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Introduction

In May 2026, Marblehead, Massachusetts, held its 377th annual town meeting.¹ On the floor was the town's third attempt to comply with the MBTA Communities Act, a 2021 state law requiring transit-served communities to zone for multifamily housing "by right"—that is, without discretionary, project-by-project review.² In order to comply, the town needed to designate a district where this zoning would apply. The town's proposed district was drawn largely over the 125-year-old Tedesco Country Club.³ One resident asked the obvious question: "Are we kind of being pricks? We're trying to make sure we build no houses?"⁴ The clip of his comment went viral, spawning its own genre of commentary, and the town ultimately approved the district.⁵

Three thousand miles away in Elk Grove, a Sacramento suburb, the same fight had already run its full course. In 2022, a nonprofit developer proposed the Oak Rose Apartments, sixty-six apartments of permanent supportive housing.⁶ The developer submitted its application under a 2017 state streamlining law providing for by-right approval that purportedly replaces discretion with a checklist of "objective" standards.⁷ Yet somehow, the checklist still became a hearing on whether those standards were met.

Residents raised safety concerns and the council denied what was supposed to be a non-discretionary project.⁸ The state's response was swift. The Department of Housing and Community Development issued a notice of violation.⁹ In May 2023, the Attorney General filed one of the state's first-ever lawsuits against a city for denying a housing project.¹⁰ When the council reconvened in September 2023 to reconsider the project under threat of judgment, public comment ran for hours. One resident suggested suing the state back. Another suggested initiating a referendum under the California Constitution. A third warned the council that "100% of the people here will vote you out if you do not fight for us today." In the end, litigation broke the impasse.

¹ Jack Attridge, *Town Meeting Message*, MARBLEHEAD CURRENT (Apr. 27, 2026), <https://marbleheadcurrent.org/2026/04/27/town-meeting-message-from-moderator-jack-attridge/>.

² Will Dowd, 'Are We Kind of Being Pricks?': Resident's Question Goes Viral as Marblehead Passes MBTA Zoning, THE MARBLEHEAD INDEPENDENT (May 5, 2026), <https://www.marbleheadindependent.com/are-we-kind-of-being-pricks-residents-question-goes-viral-as-marblehead-passes-mbta-zoning/>.

³ *Id.*

⁴ Jerusalem Demas, "Are We Kind of Being Pricks?", THE ARGUMENT (May 11, 2026), <https://www.theargumentmag.com/p/are-we-kind-of-being-pricks>.

⁵ See, e.g., Christian Britschgi, *The Need for Prick-Proof Housing Laws*, REASON (May 12, 2026), <https://reason.com/2026/05/12/the-need-for-prick-proof-housing-laws/>.

⁶ Letter from Matthew T. Struhar, Deputy Att'y Gen., Cal. Dep't of Just., to Bobbie Singh-Allen, Mayor, City of Elk Grove 1 (Mar. 16, 2023), <https://oag.ca.gov/system/files/attachments/press-docs/AGO%20Letter%20to%20Elk%20Grove%203.16.23.pdf>.

⁷ *Id.*; Cal. Gov't Code § 65913.4.

⁸ The council reasoned that the area's zoning reserves ground floors for commercial uses. Elk Grove, Cal., City Council Meeting (July 27, 2022) (transcript on file with author).

⁹ Letter from Matthew T. Struhar, *supra* note 6.

¹⁰ Press Release, Off. of Governor Gavin Newsom, Governor Newsom and Attorney General Bonta Announce a Lawsuit Against the City of Elk Grove for Violating State Fair Housing Laws (May 1, 2023), <https://www.gov.ca.gov/2023/05/01/governor-newsom-and-attorney-general-bonta-announce-a-lawsuit-against-the-city-of-elk-grove-for-violating-state-fair-housing-laws/> (alleging violations of SB 35, the Housing Accountability Act, and state fair housing law).

The city settled suits from both the developer and the state, and in May 2026, Elk Grove’s leaders gathered to break ground on the renamed Coral Blossom Apartments.¹¹

Marblehead and Elk Grove represent the front lines of a struggle between state and local governments over who controls housing approval. California’s legislature has passed dozens of laws over the past decade that chip away at local discretion, including streamlining laws, a battery of Accessory Dwelling Unit (ADU) statutes, and a revived builder’s remedy.¹² Massachusetts has built on decades of preemption with the MBTA Communities Act, the law behind the Marblehead debate.¹³ Oregon, Washington, Colorado, and Montana, among other states, have followed with regimes of their own.¹⁴ Even Florida passed a “Live Local Act” eliminating discretionary approvals for qualifying affordable housing.¹⁵ These fights are usually framed in preemption terms. Yet preemption of local control also overrides a deliberative *process*, and a central part of that process is a robust participatory infrastructure.

The case for locating land use decisions locally rests on local government’s unique responsiveness to ordinary residents. The commitment to participation runs to the foundations. The Standard State Zoning Enabling Act, the 1920s Commerce Department model that nearly every state copied, made the public hearing the primary procedural requirement for local zoning, arguing that “it is right that every citizen should be able to make his voice heard.”¹⁶ The result is one of the most elaborate participatory machineries in American government: oral, in-person, repeated, and open to anyone who shows up.

Participation is also a cornerstone of federal administrative law. Agencies that hear from all affected interests, the D.C. Circuit reasoned in *Sierra Club v. Costle*, govern with something like legislative legitimacy in the microcosm.¹⁷ That story is now under siege. Nicholas Bagley calls it a “procedure fetish”; the abundance movement blames participatory procedure for a government that cannot build; and a majority of the Supreme Court treats presidential control, not public input, as

¹¹ Idaly Valencia, *Affordable Housing Complex Breaks Ground*, ELK GROVE CITIZEN (June 2, 2026), <https://www.egcitizen.com/2026/06/02/573347/affordable-housing-complex-breaks-ground>.

¹² See *infra* Part III.B.3.

¹³ Mass. Gen. Laws ch. 40A, § 3A. The MBTA Communities Act extends a preemptive tradition dating to the 1969 Anti-Snob Zoning Act, which lets affordable-housing developers appeal local denials to a state board empowered to override them. Mass. Gen. Laws ch. 40B, §§ 20-23.

¹⁴ See, e.g., Colo. Rev. Stat. §§ 29-35-201 to -210 (2024) (H.B. 24-1313) (directing transit-oriented communities to zone for a state-set housing-opportunity goal near transit); Mont. Code Ann. §§ 76-2-304 (2023) (S.B. 323) (requiring cities of 5,000 or more to permit duplexes where single-family homes are allowed); Or. Rev. Stat. § 197A.420 (2023) (H.B. 2001) (requiring cities to allow middle housing, like duplexes and townhouses, on lots zoned for single-family use); Wash. Rev. Code §§ 36.70A.635-.638 (2023) (H.B. 1110) (requiring four to six units per lot near major transit in covered cities).

¹⁵ Fla. Stat. § 166.04151 (requiring municipalities to administratively approve qualifying affordable multifamily projects in certain zoned areas).

¹⁶ Anika Singh Lemar, *Overparticipation: Designing Effective Land Use Public Processes*, 90 FORDHAM L. REV. 1083, 1088 (2021); U.S. Dep’t of Com. Advisory Comm. on Zoning, A Standard State Zoning Enabling Act Under Which Municipalities May Adopt Zoning Regulations § 4 (rev. ed. 1926).

¹⁷ 657 F.2d 298, 400 (D.C. Cir. 1981) (“the very legitimacy of general policymaking performed by unelected administrators depends . . . upon the openness, accessibility, and amenability of these officials to the needs and ideas of the public from whom their ultimate authority derives”).

the administrative state's true democratic warrant.¹⁸ States now legislate under explicit "abundance agendas" implementing this critique, from California's extensive housing-and-permitting package to New York's "Let Them Build" program, writing the movement's premises into law.¹⁹

Whether and when participation merits its costs is an open question at nearly all levels of government, and especially at the local level. Almost no research systematically measures what happens inside local meetings at scale—what is said, by whom, and to what end—despite a legal regime that mandates participation in so many settings. The values attributed to local participation come from a sprawling set of disciplines, and the costs, meanwhile, are usually gestured at as "vetoes" and "delay," without distinguishing the mechanisms that produce them. Closing the gap in understanding both the alleged benefits and costs of participation is the work of this Article, and the evidence complicates both camps. The lesson is that participation is mandated everywhere and most forcefully at the project stage, where the evidence suggests it does the most damage. I argue that voice and veto are separable, and that deliberative, information-bearing engagement worth defending should be moved upstream to the rules and plans that govern projects in the aggregate, while the downstream application of those rules to individual projects should be made ministerial.

The Article does four things. First, it catalogs the legal infrastructure that mandates local participation. Participation requirements accrete from independent sources such as zoning ordinances, open meeting laws, and environmental review statutes. Each requirement has its own history and logic, which interact in undesigned ways. The composite is a regime in which a single apartment building can trigger more legally mandated opportunities for public input than a major federal rule, and in which the participation mandate, unlike its federal cousin, attaches with equal if not greater force to the adjudicative application of rules rather than their legislative creation.

Second, the Article disciplines a sprawling interdisciplinary literature on local participation into a framework with which evidence can engage. On the benefit side, I distill four primary theories of what participation is for: *preference elicitation* (hearings reveal what residents want), *information transmission* (residents hold local knowledge officials lack), *accountability* (participation lets the governed check the governors between elections), and *expression* (being heard has value and confers legitimacy, independent of outcomes). On the cost side, I distinguish four mechanisms by which the participatory process might impose costs: outright denial of projects, delay, costly conditioning, and litigation exposure.

Third, the Article introduces one of the largest and most comprehensive datasets on local democratic participation to date: over 25,000 city council meeting transcripts across 115 California municipalities from 2015 through 2024, comprising over 75,000 hours of recorded deliberation and over 80,000 public commenters linked to voter registration and property ownership records. The picture that emerges disciplines both sides of the debate. Participation is scarce and concentrated: Roughly 1.5 of every thousand registered voters speak at a council meeting in a given year and a quarter of speakers account for 60 percent of appearances. The participants are unrepresentative of

¹⁸ See generally Nicholas Bagley, *The Procedure Fetish*, 118 MICH. L. REV. 345 (2019); EZRA KLEIN & DEREK THOMPSON, *ABUNDANCE* (2025); Brian D. Feinstein & Daniel E. Walters, *Valuing Administrative Democracy* 17-19 (Dec. 8, 2025) (unpublished manuscript), <https://ssrn.com/abstract=5876144> (citing the Court's recent removal cases as evidence of this presidentialist view of administrative legitimacy).

¹⁹ See *infra* Part I.C.1.

registered voters in terms of race, age, gender, and homeownership, and the racial gap persists even when comparing to voters in recent local elections. However, what participants say is not mere noise. Nearly half of land-use comments carry site-specific factual claims plausibly absent from the staff record. Despite this, councils only consume a thin slice of this information: Only about ten percent of comments draw direct follow-up or engagement from the city council. And the costs of all this run through quieter channels than the word “veto” suggests. Outright denial occurs in only 2 to 5 percent of land-use votes, but organized opposition is strongly associated with delay and the types of conditions that get attached to projects.

Finally, the Article draws out the reform implications. The prescription is to reallocate thick, representative engagement to the legislative rule-and-plan stage, whereas the adjudicative project stage deserves ministerial application of law to facts. The Article also offers proposals for how—and how not—to tame participation’s costs in the meantime. The conditioning findings invite a judicial response under evolving property law principles, but I argue that exactions scrutiny under *Nollan*, *Dolan*, and now *Sheetz* is ill-suited—both doctrinally and institutionally—to policing this boundary. I argue that continued state preemption is better suited to this task, while pointing out the current statutes’ pitfalls.

The Article primarily develops this account through a study of California. Such a focus is necessary. Local governments are *local*—heterogeneous in institutions, politics, and housing markets—and claims about how participation works are challenging to test from thirty thousand feet of abstraction. California offers that depth at scale, with 483 cities, enormous internal diversity, and the nation’s most severe housing crisis.²⁰ And while California’s stack of participatory mandates is thick, the underlying institutions are fairly standard; the hearing requirements descend from the same Standard Act nearly every state adopted, the council-manager governments and planning commissions form the national template, and similar open meeting laws exist in all fifty states. Throughout, I compare California’s mechanisms and their contexts to counterparts in other jurisdictions so that the reader can judge at each step how far any insight travels. The wager of this design is that going deep is how generalizable lessons surface.

The Article proceeds as follows. Part I maps the legal infrastructure of mandated participation and develops the framework of four benefit theories and four cost mechanisms, drawing out the normative case for and against locating participation where current law puts it. Part II introduces the data and presents the empirical analysis: who participates, what they say, and to what effect. Part III returns to law, translating the voice-versus-veto account into concrete reform for state legislatures designing preemption, for cities redesigning their own processes, and for the scholarly debate over whether procedure can be democratic and government can still build.

I. How and Why We Have Local Participation

The local government participatory apparatus is large and old. This Part reconstructs the apparatus along two dimensions: what it is and what it is for. The first section maps the legal

²⁰ See Press Release, Cal. Dep’t of Fin., *Federal Policy Changes Constricting Legal International Migration Cause Slight State Population Dip in 2025* (May 1, 2026), https://dof.ca.gov/media/docs/forecasting/Demographics/estimates/E-1_2026_Press_Release.pdf.

infrastructure of participation, starting with the universal open-meeting floor and building to a subject-specific superstructure that stacks hearing mandates onto particular decisions. The second section reconstructs the affirmative case as four distinct theories of what local participation is for. It elicits preferences; it transmits local knowledge that a capacity-strained government cannot generate on its own; it holds officials accountable by forcing decisions into public view and building the record a court later reads; and it confers expressive value on the speaker and legitimacy on the institution. Each theory implies its own standard of success, which Part II then takes to the data. The third section reconstructs the case against the participatory intuition, providing the critique now most associated with the “abundance” movement that procedure built to discipline government can instead disable it. I separate the critique into mechanisms through which participation can be most harmful in the housing space, each of which generates a prediction about what the record should reveal.

A. The Legal Infrastructure of Participation

Consider a proposed mixed-use housing project in a California city. Before the first shovel touches dirt, the project may trigger public hearings under the local zoning ordinance, a separate comment period under the state’s environmental law, a coastal development permit hearing if it falls within the coastal zone, and a public comment opportunity at the city council meeting, guaranteed by the Brown Act, where the project will ultimately be put up for approval. If the city is spending federal funds on related infrastructure, add a mandated citizen participation process. Each requirement originates in a different legal tradition, and yet many converge on the same institutional channel: a person standing at a podium, often in a city council chamber, speaking for about three minutes.

That sequence is the familiar face of participatory procedure, and one small corner of a much larger apparatus with two layers. A universal floor, set by open-meeting law, guarantees a right to attend and speak before every local body, regardless of subject matter. A subject-specific superstructure then stacks statutory hearing requirements onto particular decisions, like zoning or environmental approvals. I take them in turn, beginning with the floor.

1. *The Open-Meeting Floor and Local Legislative Bodies*

Open-meeting laws guarantee any member of the public the right to attend meetings of the local legislative body, and in many cases, to speak.²¹ In most regions of the country, the city council

²¹ Many states affirmatively guarantee the opportunity to speak. *See, e.g.*, Cal. Gov’t Code § 54954.3(a); Fla. Stat. § 286.0114(2) (similar); 65 Pa. Cons. Stat. § 710.1(a) (requiring a “reasonable opportunity” for residents or taxpayers—though not the public at large—to comment); Tenn. Code Ann. § 8-44-112; Tex. Gov’t Code Ann. § 551.007(b) (requiring a governmental body to “allow each member of the public who desires to address the body regarding an item on an agenda . . . to address the body . . . before or during the body’s consideration of the item”). Other states guarantee only attendance. *See, e.g.*, Ariz. Rev. Stat. § 38-431.01 (public body “may”—but need not—“make an open call to the public”); Conn. Gen. Stat. § 1-225(a); Mass. Gen. Laws ch. 30A, § 20(a), (g) (meetings open to the public, but “[n]o person shall address a meeting of a public body without permission of the chair”); Mo. Rev. Stat. § 610.015; N.Y. Pub. Off. Law § 103(a).

is the elected legislative body of the municipality.²² In California, most city councils are either five- or seven-person elected bodies with a member selected to serve as the “mayor”; in other words, the boundary between executive and legislative is blurry at best.²³

Every state has an open-meeting law.²⁴ California’s Brown Act is a particularly strong iteration. Passed in 1953, it applies to all local legislative bodies, which include city councils, county boards, school districts, and a wide range of special-purpose agencies.²⁵ It applies to meetings, defined broadly to include “asynchronous communications used to arrive at agreements to act.”²⁶ It requires that meetings be “open and public,” and that the public have an “opportunity ... to directly address the legislative body,” subject to “reasonable regulations,” including limits on each speaker’s time and total public testimony.²⁷ Closed sessions are permitted only for narrow categories of discussion like real property negotiations, pending litigation, and personnel matters.²⁸ The Act allows any “interested person” to seek mandamus, injunctive relief, or declaratory relief, and intentional violations can trigger misdemeanor liability.²⁹ Brown Act litigation often serves as a procedural vehicle for substantive disputes, with one recent survey identifying 136 appellate decisions

²² The plurality of municipal governments—48 percent—use the council-manager form, in which an “elected council or board and chief elected official are responsible for making policy with advice of the chief appointed official (e.g., administrator/manager).” Int’l City/Cnty. Mgmt. Ass’n, *2018 Municipal Form of Government Survey*, at iii, 1 (2019), <https://icma.org/2018-municipal-fog-survey> [hereinafter ICMA Survey]. The mayor-council form—an elected council serving as the legislative body and a separately elected mayor as executive—is next most common, at 38 percent. *Id.* In both, the city council is the legislative body. The council-manager form predominates among mid-sized cities, whereas big cities (over 250,000 in population) most often use the mayor-council, or strong-mayor, form. Author’s calculations using ICMA raw data. Council-manager governments are most common in the West (69 percent) and the South (64 percent); in the Northeast, a strong contingent of towns—24 percent—instead use the town-meeting form of government, in which qualified voters “convene and act as a legislative body that makes basic policy, votes on the budget, and chooses a board.” *Id.*; ICMA Survey.

²³ See Cal. Gov’t Code § 36801. For general law cities, the government is vested in a “city council of at least five members.” *Id.* § 36501. Cities can also decide to adopt an elected mayor system. *Id.* § 34900.

²⁴ Alex Aichinger, *Open Meeting Laws and Freedom of Speech*, The First Amendment Encyclopedia (Aug. 3, 2023), <https://firstamendment.mtsu.edu/article/open-meeting-laws-and-freedom-of-speech/>. The federal government also has its own Sunshine Act, 5 U.S.C. § 552b. But the federal law is much weaker than many state counterparts; it confers only a right of observation, applies only to meetings of multimember agencies, provides no remedy that invalidates agency action, and is generally read not to apply to exploratory or background discussions. See *id.*; *F.C.C. v. ITT World Communications, Inc.*, 466 U.S. 463, 469-473 (1984).

²⁵ Cal. Gov’t Code §§ 54951, 54952; Anne Richardson Oakes & Julian Killingley, *California’s Brown Act: Clearing the Smoke-Filled Room*, 58 CAL. W. L. REV. 1, 6 (2021). The Brown Act’s passage was catalyzed by a series of newspaper articles that “exposed the Bay Area government’s dismissive attitude to open meeting requirements and the tactics adopted to avoid them,” such as by re-labeling meetings as “caucus[es]” or “pre-council meetings.” *Id.* at 5-7. Note California has separate open meeting laws for local (the Brown Act) and state government (the Bagley-Keene Open Meeting Act). *Id.* at 9.

²⁶ Oakes & Killingley, *supra* note 25, at 10; Cal. Gov’t Code § 54952.2.

²⁷ Cal. Gov’t Code §§ 54953(a), 54954.3. The Act forbids barriers to attendance such as sign-in requirements. *Id.* First Amendment suits for speech limitations—e.g., commonly three minutes—have largely been unsuccessful. See, e.g., *Ribakoff v. City of Long Beach*, 238 Cal. Rptr. 3d 81, 99-103 (Ct. App. 2018).

²⁸ Cal. Gov’t Code §§ 54962, 54956.8, 54956.9, 54957.

²⁹ *Id.* §§ 54959-54960. However, prosecutions under the penal provision are rare. Oakes & Killingley, *supra* note 25, at 8.

implicating the Act between 1973 and 2021, most often involving real property disputes, employee discipline, and requests for mandamus.³⁰

These guarantees describe a right of access—but to what? Within a single city council meeting, public participation takes several distinct forms. All meetings provide some opportunity for general public comment during which any resident can speak for one to three minutes on any subject not already on the agenda. The council takes no vote and rarely speaks during this period. Routine business then moves through the consent calendar, which batches uncontroversial items like approvals of minutes and contract renewals into a single vote with no discussion, unless a member pulls an item out for separate treatment. Substantive policy is typically decided on the agendized discussion calendar, where the staff typically provides a report, the public can comment, and the council asks questions, deliberates, and typically votes. Finally, some matters take the form of a formal, noticed public hearing where members make ex parte disclosures, opponents and the public testify, and the council deliberates and adopts findings. Rezonings, subdivisions, environmental determinations, and property-related fee adoptions typically arrive in this format. These formal hearings are also often where the participatory apparatus’s second layer attaches.

2. *Participation as a Code-Wide Procedural Reflex*

While this Article focuses on public participation in land use, the participatory impulse it studies runs through nearly the entire body of governance. To measure its full scope, I use an LLM-based tool, the Statutory Research Assistant (STARA), to conduct a systematic survey of the California statutory code, identifying every provision that mandates a public hearing, public comment period, or community-engagement opportunity in connection with a governmental proceeding or decision.³¹

California law contains over 2,400 such provisions scattered across all 24 titles of the code. The top three sources are the Health and Safety Code (499 provisions), the Government Code (424), and the Public Resources Code (343). Sorted by substantive policy domain, land use (including planning and zoning) is the single largest domain with 252 provisions, more than local public finance (195), health and human services (192), and agriculture and open space (188). The most common participation format is an oral hearing (67%), followed by written comment periods (20%) and workshops (11%). Mandate growth accelerated in the 1970s, and the stock has continued to grow in recent years.³²

³⁰ Oakes & Killingley, *supra* note 25, at 19.

³¹ See Faiz Surani et al., *What Is the Law? A System for Statutory Research (STARA) with Large Language Models*, ICAIL 2025; Appendix § 1.

³² Repeal is generally rare. For the 2023-24 session, 222 of 9,684 (2.3%) of identifiable code-section actions were repeals. Author’s calculations from California Legislative Information Bulk Archive, pubinfo_2023.zip, <https://downloads.leginfo.legislature.ca.gov/> (sections designated as IS_REPEALED).

VOICE OR VETO?

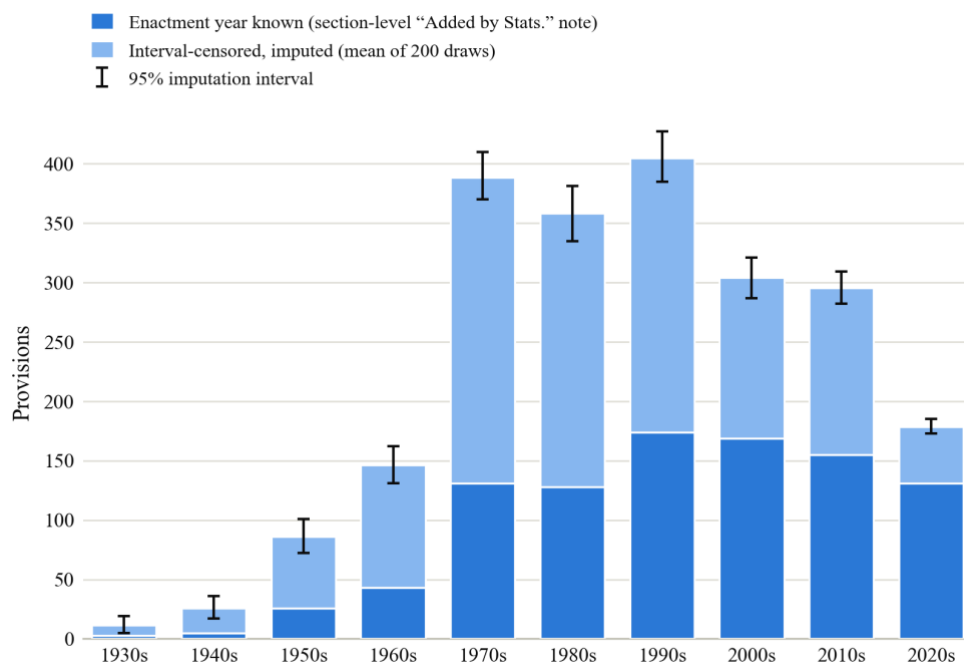


Figure 1: Enactment Decades of Participation Mandates³³

The breadth of the landscape is easiest to see at its edges. Public hearings are required to recalculate the rate paid to curbside recyclers for beverage containers³⁴ and to determine seasonal access to a single trail near Palm Springs.³⁵ The Government Code mandates that law enforcement agencies obtain approval through a public hearing before acquiring military equipment.³⁶ The Vehicle Code requires the DMV to hold hearings when establishing programs for alternative license plate devices, and requires the commissioner to hold public hearings before adopting noise standards for pneumatic tires.³⁷

Most of these hearings are triggered automatically as a default step in the proceeding, and nearly all are open to any member of the public. Nearly 60 percent of mandates attach to legislative acts adopting or amending a plan, program, or policy, and eight percent attach to functionally adjudicative proceedings involving penalties, license revocation, or individual applications. Overall, the public hearing arises as a default procedural setting in state law, attached to governmental decisions with little regard for whether it is the right instrument for the decision at hand.

³³ See Appendix § 1.2 for full dating methodology.

³⁴ Cal. Pub. Res. Code § 14549.5.C.

³⁵ Cal. Fish & Game Code § 1587.

³⁶ Cal. Gov't Code § 7071.

³⁷ Cal. Veh. Code §§ 4854, 27503.

3. *Land Use as a Layered Participatory System*

As shown above, land use is where the participatory infrastructure is the thickest. Land use decisions stretch across a variety of different bodies and legal modalities. For housing, the two most critical bodies are the city council and the planning commission. Legislative acts like adopting or amending the general plan, rezoning, or approving a specific plan belong to the council.³⁸ Adjudicative acts applying existing standards to a particular parcel or applicant—like conditional use permits, variances, tentative maps, and design review—formally rest with an appointed planning commission.³⁹ Yet the council frequently enters adjudicative matters on appeal or through councilmember decisions to “call up” potentially controversial projects, and in practice, many cities route their largest projects to the council regardless of entitlement type.⁴⁰

Whichever body acts, the duty to hold a hearing typically accumulates from layers of law that developed separately and now operate together. The oldest and most familiar one is zoning. Zoning hearing mandates trace to the Standard State Zoning Enabling Act (the “Standard Act”), a federal model law published in 1924 that most states adopted in some form.⁴¹ The Standard Act’s participation requirement was minimal, requiring a single public hearing, with fifteen days’ notice, before adoption of or amendment to a local zoning ordinance.⁴² Modern zoning enabling acts generally require hearings not only for amendments to the zoning code, but also for variances, conditional use permits, subdivision approvals, and site plan reviews, each of which may trigger separate notice and hearing obligations.⁴³

Environmental review adds another layer, though not always in the form of a hearing. In California, the California Environmental Quality Act (CEQA) applies to discretionary projects unless an exemption applies.⁴⁴ Its main participatory demands arise once an environmental document is prepared. Draft Environmental Impact Reports (EIRs) must be circulated for public comment for at least thirty days, and agencies must respond in writing to timely comments on

³⁸ Cal. Gov’t Code §§ 65354, 65356 (general plan: commission recommends, legislative body adopts); *id.* §§ 65853–65857 (zoning amendments); *id.* § 65453 (specific plans); *id.* § 65867.5 (development agreements are “legislative act[s]”); *see* Arnel Dev. Co. v. City of Costa Mesa, 28 Cal. 3d 511, 514, 517 (1980) (rezonings are legislative acts).

³⁹ Cal. Gov’t Code § 65101 (planning commissions); *id.* §§ 65901–65902 (use permits and variances decided by a board of zoning adjustment or zoning administrator, functions cities often assign to the commission); *id.* § 65906 (variance standards); *id.* § 66415 (tentative maps); design and site-plan review are creatures of local ordinance. When granting these entitlements, the commission acts quasi-judicially and must make findings bridging evidence and decision. Topanga Ass’n for a Scenic Cmty. v. Cnty. of Los Angeles, 11 Cal. 3d 506, 514–515, 517 (1974).

⁴⁰ Appeals to the council run under Cal. Gov’t Code §§ 65903–65904; “call-up” or “call for review” provisions are local and not state-mandated.

⁴¹ Lemar, *supra* note 16, at 1088.

⁴² *See* Standard State Zoning Enabling Act, *supra* note 16, § 4.

⁴³ Vicki Been & Anika Singh Lemar, *The Law’s Effects on Public Participation 2*, in A RESEARCH AGENDA FOR US LAND USE AND PLANNING LAW (John J. Infranca & Sarah Schindler eds., 2023); Lemar, *supra* note 16, at 1090–91.

⁴⁴ *See* Cal. Pub. Res. Code §§ 21080, 21152(b). Note that CEQA was significantly reformed in 2025 to exempt most infill housing projects. *See infra* Part III.B.2.

environmental issues.⁴⁵ So CEQA often stacks a comment period on top of zoning law, even where the hearing obligation itself comes from some other source.

Local governments then pile on further. Municipal charters and ordinances frequently impose additional hearings and create additional review bodies, such as planning commissions, design review boards, neighborhood councils, and community advisory committees, each with their own hearing and public participation processes.⁴⁶ State law sets floors but not ceilings on local participation requirements.⁴⁷

Federal funding conditions reinforce the same pattern. For example, local grantees under the Community Development Block Grant (CDBG) must have a “detailed citizen participation plan” and HUD rules require the jurisdiction to publish the proposed consolidated plan, allow at least 30 days for comments, consider comments and attach a summary of accepted and rejected comments, provide at least two public hearings per year, and respond to written complaints within 15 working days where practicable.⁴⁸

4. *The Political Equilibrium*

Formal mandates explain only part of how participation became so central to local governance. As Noah Kazis argues, participation might persist without any statutory requirements.⁴⁹ For example, transportation law generally does not mandate participation with the intensity of land use law; and yet, governments continue to “deliberately and voluntarily empower hyper-local voices.”⁵⁰ In his account, neighbors are sufficiently incentivized to participate such that “they do not need any procedural encouragement,” and local elected officials are eager to “air out all controversy in a controlled setting before it is too late.”⁵¹ If this is true, cutting legal mandates may do little to reduce participation. But law does shape, at minimum, the *form* participation takes, and form matters. Informal participation—like a constituent calling a councilmember or a neighborhood association circulating a position—generates no exhaustion-of-remedies prerequisite, nor does it build a record for procedural challenge, nor does it trigger the litigation through which public comment exerts its sharpest discipline on government decisions. Formal, on-the-record comment does all three. The line between formal and informal participation is, in practice, the line between participation that carries legal consequences and participation that does not.

⁴⁵ Cal. Pub. Res. Code § 21091(a), (d).

⁴⁶ Been & Lemar, *supra* note 43, at 2 (citing as an example Minneapolis, Minn. Code of Ordinances app. A, tit. IX, § 1 (2022)). Palo Alto, for example, permits residents within 600 feet of a protected tree removal to request a public hearing to “review the urban forester’s decision.” Palo Alto, Cal., Mun. Code § 8.10.140.

⁴⁷ See Been & Lemar, *supra* note 43, at 8.

⁴⁸ 42 U.S.C. § 5304(a). The statutory basis for these requirements has left them unaffected by recent Trump Administration rulemaking on fair housing. See Affirmatively Furthering Fair Housing Revisions, 90 Fed. Reg. 11,020, 11,023–24 (Mar. 3, 2025).

⁴⁹ Noah Kazis, *Transportation, Land Use, and the Sources of Hyper-Localism*, 106 IOWA L. REV. 2339, 2360-66 (2021).

⁵⁰ *Id.* at 2349.

⁵¹ *Id.* at 2362.

B. The Normative Case for Local Participation

The previous section illustrated the pervasive reliance in law on public participation opportunities as a procedural mechanism. But what exactly are these opportunities a mechanism *for*? This section disciplines the answers scattered across disciplines into four primary (though not necessarily exhaustive or mutually exclusive) categories. Participation elicits residents' preferences on questions elections are too blunt to resolve; it transmits local expertise a capacity-strained government might not be able to generate on its own; it holds officials accountable by forcing decisions into public view and building the record a court later reads; and it delivers expressive value to the person heard and legitimizing value to local government itself, independent of whether the first three obtain. Each subsection develops the theoretical case for each value, and asks what success might look like under each criterion. Those criteria then structure the empirical evaluation that follows in Part II.

1. Democratic Preference Elicitation

Elections are the textbook mechanism for eliciting and aggregating preferences, but they are a blunt tool.⁵² A voter picks a councilmember once every few years, bundling policing, pensions, and potholes into a single choice. Local elections especially are low-turnout, low-information, and in most jurisdictions, nonpartisan, so voters lack even a party-label heuristic.⁵³

Public participation is supposed to help fill this gap. The most basic justification for requiring public comment, public hearings, and open meetings at the local level is preference elicitation. In other words, policymakers want to know what residents want on specific questions that elections cannot resolve, and residents want a channel through which to express those preferences.⁵⁴

The localism tradition predicts this elicitation should work with special force at the local level, for two reasons.⁵⁵ The first is appropriateness. Local governments make decisions about streets, policing, schools, and neighborhood characteristics, matters that bear on home and family in a way the diffuse questions of state and national politics often do not. Richard Briffault calls this the suburban model, where the locality stands in as protector of home and a haven from the world beyond its borders.⁵⁶ The second is feasibility. A smaller community shrinks the population denominator and hands each resident a larger share of influence, and a resident can participate in

⁵² See generally ANTHONY DOWNS, AN ECONOMIC THEORY OF DEMOCRACY 49-50 (1957); DUNCAN BLACK, THE THEORY OF COMMITTEES AND ELECTIONS (1958); Timothy Besley & Stephen Coate, *Issue Unbundling via Citizens' Initiatives*, 3 Q.J. POL. SCI. 379 (2008).

⁵³ See David Schleicher, *Why Is There No Partisan Competition in City Council Elections?*, 23 J.L. & POL. 419, 419-28 (2007); David Schleicher & Nick Bagley, *The State Capacity Crisis*, 66 BOS. COL. L. REV. 2301, 2344-49 (2025); Sarah Anzia, *Timing and Turnout: How Off-Cycle Elections Favor Organized Groups*, 14 PERSP. ON POL. 875 (2016).

⁵⁴ See Carol M. Rose, *Planning and Dealing: Piecemeal Land Controls as a Problem of Local Legitimacy*, 71 CAL. L. REV. 837, 883-87 (1983); Been & Lemar, *supra* note 43, at 6.

⁵⁵ Zachary D. Clopton & Nadav Shoked, *Suing Cities*, 133 YALE L.J. 2540, 2585 (2024) ("One of the most important functions of local government is to advance democratic participation."); David J. Barron, *The Promise of Cooley's City: Traces of Local Constitutionalism*, 147 U. PA. L. REV. 487, 490 (1999).

⁵⁶ Richard Briffault, *Our Localism: Part II-Localism and Legal Theory*, 90 COL. L. REV. 346, 382-92 (1990); *Village of Belle Terre v. Boraas*, 416 U.S. 1, 9 (1974) (referring to the village as "a sanctuary for people"); Margaret Jane Radin, *Property and Personhood*, 34 STAN. L. REV. 957, 1013 (1982).

multiple settings, ranging from speaking at a planning commission hearing to emailing their representative, and reasonably expect to be heard at each.⁵⁷ The resulting ambition is that local venues are “open to all,” capable of registering and adjusting to residents’ preferences in ways higher levels of government cannot replicate.⁵⁸

For participation to perform well as preference elicitation, the democratic benchmark is whether those heard resemble those affected.⁵⁹ Participation is costly, requiring time, transportation, childcare, and a willingness to speak publicly, while its returns are uneven.⁶⁰ Residents with moderate preferences rationally abstain, and the participating sample skews more extreme than the population it is drawn from.⁶¹ The two participatory institutions most like local public comment have used representativeness as a primary evaluation criterion. In voting, hundreds if not thousands of papers analyze the issue of unequal turnout, and millions if not billions of dollars have been spent to try to address turnout imbalances.⁶² The notice-and-comment scholarship runs similarly in treating unrepresentative comment as a flaw to be fixed.⁶³

⁵⁷ The institutional architecture further shortens the loop. Most local governments lack formal separation of powers—the executive sits within the legislative body—so the legislature can respond quickly to administrative action. Nestor Davidson, *Localist Administrative Law*, 126 YALE L.J. 564, 600-01 (2017).

⁵⁸ Clopton & Shoked, *supra* note 58, at 2586; Gerald E. Frug, *The City as a Legal Concept*, 93 HARV. L. REV. 1057 (1980); Briffault, *supra* note 56, at 397.

⁵⁹ Taken seriously, the Tiebout model of local public goods might make representativeness beside the point: sorting into homogeneous polities would just be residents “voting with their feet.” Charles M. Tiebout, *A Pure Theory of Local Expenditures*, 64 J. POL. ECON. 416, 421-424 (1956). But Tiebout’s equilibrium assumes costless mobility, perfect information about jurisdictional differences, employment untethered to place, and—critically—no externalities from local decisions. *Id.* at 419. None of these holds in practice.

⁶⁰ Online participation options made broadly available during the pandemic should have reduced these costs and increased participation. In causal work on this matter, I find that this is generally true (with some noise), but that demographic composition is largely unchanged. *See infra* Part III.A.

⁶¹ *See* Martin J. Osborne, Jeffrey S. Rosenthal, & Matthew A. Turner, *Meetings with Costly Participation*, 90 AM. ECON. REV. 927, 937-38 (2000).

⁶² *See, e.g.,* Arend Lijphart, *Unequal Participation: Democracy’s Unresolved Dilemma*, 91 AM. POL. SCI. R. 1 (1997); BERNARD L. FRAGA, *THE TURNOUT GAP* (2018); LISA GARCIA BEDOLLA & MELISSA R. MICHELSON, *MOBILIZING INCLUSION* (2012); NAACP, *NAACP Reached 14.5 Million Voters Through Historic \$20M+ Investment in 2024 Election—Building Black Political Power and Progress* (Nov. 5, 2024), <https://naacp.org/articles/naacp-reached-145-million-voters-through-historic-20m-investment-2024-election-building>.

⁶³ *See* Jim Rossi & Kevin M. Stack, *Representative Rulemaking*, 109 IOWA L. REV. 1, 3 (2023) (empirical studies consistently find rulemaking participation “deeply unrepresentative” across regulatory contexts); Susan Webb Yackee, *The Politics of Rulemaking in the United States*, 22 ANN. REV. POL. SCI. 37, 45-48 (2019) (higher influence by business interests); David Arkush, *Direct Republicanism in the Administrative Process*, 81 GEO. WASH. L. REV. 1458, 1491-93 (2013); Blake Emerson & Jon D. Michaels, *Abandoning Presidential Administration*, 68 UCLA L. REV. 104, 133 (2021) (group consultation); Bijal Shah, *Administrative Subordination*, 91 U. CHI. L. REV. 1603, 1659-89 (2024) (proxy representation for underserved interests). *But cf.* Steven P. Croley, *Theories of Regulation: Incorporating the Administrative Process*, 98 COL. L. REV. 1, 17-24 (1998) (arguing that skewed participation need not yield skewed outcomes); Cary Coglianese, *Citizen Participation in Rulemaking: Past, Present, and Future*, 55 DUKE L.J. 943, 958 (2006) (questioning whether broadening the participant pool via e-rulemaking meaningfully improves regulatory quality); Alexander Spangher et al., *DOCKET: A Pluralistic Benchmark for Evaluating LLM Policy Feedback* (June 2026) (unpublished manuscript) (finding that individual and advocacy organization comments outnumber those from industry among 8.27 million comments).

Representative voice is ultimately a proxy for ensuring that everyone with a real stake in the decision has a chance to be heard.⁶⁴ Measuring affectedness directly is rarely possible, because we do not observe the stakes or preferences of those who stayed home. The primary proxy the voting and participation literatures have long relied on is the *demographic* representativeness of participants relative to the eligible population. If the people who show up resemble the community, we have more reason to believe the preferences they express are at least plausibly representative of it. If they do not, we have a principled reason to worry, and a measurable place to look.

One might argue that representative voice is the wrong criterion. On this view, public comment is not a poll of community opinion. Its job is to surface the views of those with a real stake, allowing the cost of showing up to filter out those who are too indifferent to bear the cost.⁶⁵ The argument fails as a defense of unrepresentative preferences for three reasons. First, the screen is contaminated. Effort sorts for intensity only if the cost of participating tracks the stakes, and it does not; it tracks free time, a flexible schedule, freedom from childcare, English fluency, secure immigration status, comfort with procedure, and the rootedness of ownership at least as much as it tracks affectedness.⁶⁶ Second, affectedness is not adjacency. The affected class for a housing decision runs far wider than the parcel's neighbors, and much of it cannot be in the room. Renters across the region who would benefit from new housing, workers who cannot afford to live within a reasonable commute, and households paying higher prices because housing is scarce are all affected now. Yet their costs of participation are nearly prohibitive. Third, other domains do not treat costly participation as self-validating. In voting, for example, we generally treat low and uneven turnout as a distortion to be corrected, not as a sign that non-voters are content.

In land use, the skew of participation has a theorized direction. As William Fischel's homevoter hypothesis explains, the costs of a project concentrate on its neighbors while its benefits diffuse across the region and the future, so the residents with the sharpest and most reliable reason to participate are homeowners, whose largest asset sits beside the proposed change.⁶⁷ We would then expect commenters to look disproportionately like homeowners, who are more likely to be older and whiter.⁶⁸

⁶⁴ See Christopher S. Havassy, *Relational Fairness in the Administrative State*, 109 VA. L. REV. 749, 781-790 (2023).

⁶⁵ See George A. Akerlof, *The Economics of "Tagging" as Applied to the Optimal Income Tax, Welfare Programs, and Manpower Planning*, 68 AM. ECON. REV. 8 (1978). These arguments have, of course, drawn philosophical counterarguments. See Elizabeth S. Anderson, *What Is the Point of Equality?*, 109 ETHICS 287, 305-07 (1999) (relational-egalitarian objection to demeaning ordeals).

⁶⁶ These costs also often fall hardest on those least equipped to bear them. See, e.g., Manasi Deshpande & Yue Li, *Who Is Screened Out? Application Costs and the Targeting of Disability Programs*, 11 AM. ECON. J.: ECON. POL'Y 213 (2019); PAMELA HERD & DONALD P. MOYNIHAN, ADMINISTRATIVE BURDEN: POLICYMAKING BY OTHER MEANS (2018).

⁶⁷ WILLIAM A. FISCHEL, THE HOMEVOTER HYPOTHESIS: HOW HOME VALUES INFLUENCE LOCAL GOVERNMENT TAXATION, SCHOOL FINANCE, AND LAND-USE POLICIES (2001).

⁶⁸ See U.S. Census Bureau, Homeownership by Selected Demographic and Housing Characteristics (Oct. 8, 2021), <https://www.census.gov/data/tables/time-series/dec/coh-ownerchar.html>.

2. Objective Information Transmission

While preference elicitation asks whom the record represents, information transmission asks what it teaches, regardless of how representative participation is. Local officials often face real uncertainty about conditions that residents may know firsthand, like where flooding recurs or which intersection has dangerous blind spots. Cities vary dramatically in their capacity to resolve that uncertainty internally.⁶⁹ For example, Palo Alto spends over four times as much per capita as neighboring East Palo Alto, Fremont, or San Ramon.⁷⁰ A city with robust staff (and consultants) can, in principle, generate the information it needs to make quality decisions internally. The capacity that bears most directly on land use is thinner still. Planners, building officials, and engineers together make up under seven percent of municipal staff statewide, and that capacity scales steeply with a city's income.⁷¹ For lower-capacity cities, residents may be the cheapest available source of decision-relevant facts about local conditions. Even in well-resourced jurisdictions, however, local capacity remains structurally thin by federal administrative-law standards. The body reviewing a 200-unit building is often a part-time council or commission meeting on a weeknight, with no municipal Congressional Budget Office to score fiscal effects and no local Government Accountability Office to audit the staff report.⁷²

The informational rationale rests on a Hayekian premise that knowledge relevant to land-use decisions is often dispersed, particular, and held by people who live with local conditions.⁷³ Nestor Davidson describes local agency expertise as aggregative, collecting and mediating place-specific information rather than deriving policy from a distance.⁷⁴ Carol Rose similarly frames local land-use institutions as mediated channels for intensely personal, place-specific knowledge.⁷⁵ What residents supply on this account is situated knowledge—like where many almost-accidents may occur or where drains are frequently clogged—that might be individually mundane, but collectively informative. Federal notice-and-comment rests similarly on the idea that regulated firms and advocacy groups may possess information the agency cannot easily generate itself.⁷⁶ But the analogy is partial. Federal commenters are often sophisticated repeat players submitting technical

⁶⁹ See Davidson, *supra* note 57, at n.141 (2017); Michelle Wilde Anderson, *The New Minimal Cities*, 123 YALE L.J. 1118, 1129-51 (2014).

⁷⁰ Author's calculations from 2022 Census of Governments Data (Palo Alto: \$6,417 per capita; Fremont: \$1,571; East Palo Alto: \$1,317; and San Ramon: \$1,222).

⁷¹ Author's calculations from the 2024 Government Compensation in California data (California State Controller) merged to 2023 ACS five-year median household income. The four largest functions (police, fire, public works, parks) account for about 65% of municipal staff. Per resident, the highest-income quintile of cities employs roughly twice the planning and building staff, and three times the engineers, of the lowest, while police staffing differs by under 10% across the income distribution.

⁷² See Kellen Zale, *Compensating City Councils*, 70 STAN. L. REV. 839, 851 (2018); Bagley & Schleicher, *supra* note 53, at 2306.

⁷³ See F.A. Hayek, *The Use of Knowledge in Society*, 35 AM. ECON. REV. 519, 520-26 (1945) (arguing that decisionmaking depends on knowledge “dispersed among many people,” including “knowledge of people, of local conditions, and special circumstances”); see also Lea S. VanderVelde, *Local Knowledge, Legal Knowledge, and Zoning Law*, 75 IOWA L. REV. 1057, 1057-63 (1990).

⁷⁴ Davidson, *supra* note 57, at 616.

⁷⁵ Rose, *supra* note 54, at 887-93.

⁷⁶ See, e.g., Wendy E. Wagner, *Administrative Law, Filter Failure, and Information Capture*, 59 DUKE L.J. 1321, 1330-42 (2010) (also noting the dangers of excessive information, or “information capture”).

data to an expert agency; local commenters are typically lay residents reporting lived observations to part-time officials.⁷⁷

At a theoretical level, local comment may partially satisfy this informational rationale. Some testimony conveys concrete, verifiable observations, but other claims are predictions about counterfactual futures—that a project will worsen traffic or depress property values.⁷⁸ Those claims come from interested speakers, and the decisionmaker must separate observation from conjecture. Strategic-communication theory suggests that this task is easiest when claims are verifiable, the speaker's bias is known, and opposing interests force each side to reveal what the other would omit.⁷⁹ Local land-use hearings only sometimes have these features. Nearby opponents often appear in force, while developers and diffuse beneficiaries appear less often, though pro-housing organizations provide a partial and geographically uneven corrective. And the novice decisionmakers who most need outside facts are often least equipped to evaluate them.⁸⁰ The key question for evaluation is therefore whether participation adds useful information beyond what the government already had, and whether councilmembers recognize and use that information.

3. Accountability

If preference elicitation asks whom the record represents, and information transmission asks what it teaches, accountability asks whether participatory decisionmaking creates consequences for official misconduct, bias, or neglect. Open meetings supply the first condition, a decision made in public view, but visibility alone does little unless someone monitors what officials do and has some way to respond. Accountability requires that decisions be observable so someone can notice a problem and that some institutions—whether elections, litigation, or the press—be able to impose a consequence.

Monitoring is canonically achieved through elections, which provide a threat of removal.⁸¹ But that discipline depends on information and competition, both of which are often lacking at the local level.⁸² Law has built a supplementary accountability apparatus between elections. Open-meeting

⁷⁷ See, e.g., Rossi & Stack, *supra* note 63; Yackee, *supra* note 63; Spangher et al., *supra* note 63 (observing that repeat players often raise more technical concerns related to economics, health, or science).

⁷⁸ See Lemar, *supra* note 16 at 1121 (documenting testimony that routinely contradicts engineering reports and forecasts that later evidence proved wrong). There is also evidence that lay predictions may be grounded outside of economic reality. See Chris Elmendorf, Clayton Nall, & Stan Oklobzija, *The Folk Economics of Housing*, 39 J. ECON. PERSPECTIVES 45, 53 (2025) (finding that roughly a third of residents expect a large increase in regional housing supply to raise prices, not lower them).

⁷⁹ See Paul Milgrom & John Roberts, *Relying on the Information of Interested Parties*, 17 RAND J. ECON. 8 (1986); Vincent P. Crawford & Joel Sobel, *Strategic Information Transmission*, 50 ECONOMETRICA 1431 (1982) (without such verification, communication can collapse into cheap talk).

⁸⁰ Lemar, *supra* note 16, at 1146 (arguing that land-use hearings operate more like jury than bench trials).

⁸¹ See generally Robert J. Barro, *The Control of Politicians: An Economic Model*, 14 PUB. CHOICE 19, 19-20, 26-29 (1973); John Ferejohn, *Incumbent Performance and Electoral Control*, 50 PUB. CHOICE 5, 6-8 (1986); Scott Ashworth, *Electoral Accountability: Recent Theoretical and Empirical Work*, 15 ANN. REV. POL. SCI. 183, 183-84 (2012).

⁸² Local elections are often low turnout, have low media coverage, and are usually non-partisan, so voters lack party labels to use as heuristics. See Zoltan L. Hajnal & Paul G. Lewis, *Municipal Institutions and Voter Turnout in Local Elections*, 38 URB. AFF. REV. 645, 645-46, 655-56 (2003) (documenting low turnout in mayoral and city council elections); *supra* note 53.

laws force decisions into public view, while due-process review allows courts to undo decisions reached through bias, prejudgment, or irregularity.⁸³ California's Brown Act specifically grew out of a 1952 news series documenting how elected bodies evaded scrutiny, relabeling meetings as private "caucuses" to keep decisions off the public record.⁸⁴ Participation does two things inside this apparatus that observability alone cannot. It works as a fire alarm: Self-selected residents are the decentralized monitors that review the thousands of decisions no court, reporter, or voter could directly patrol.⁸⁵ And it builds the record by preserving objections for future reversal.⁸⁶

Participation succeeds on this dimension if visibility deters misconduct, a claim transcripts alone cannot test. What they can address is a comment's marginal contribution. Oral comment operates alongside a broader accountability apparatus of record requests, state audits, private litigation, and Attorney General enforcement, where capacity is often thinner but whose scrutiny is more neutral. Comment's distinctive offer is abundant, decentralized monitoring, contemporaneous with the decision, supplied by self-selected and interested parties.⁸⁷ Whether that adds anything turns on what commenters actually surface and how much council business is even open to inspection rather than conducted in closed session. Part II takes up that evidence.

4. Civic and Expressive Value

Participation is also valuable for what it brings to the participant and to civic life, independent of any decision it improves. This is the oldest justification in the literature. Tocqueville saw the New England township as the school in which Americans learned self-government; the town meeting gave sovereignty within ordinary people's reach and taught them how to use it.⁸⁸ John Stuart Mill made the claim even more explicit, arguing that taking part in public functions draws a person beyond private interest and cultivates the judgment that representative government depends

⁸³ See *Clark v. City of Hermosa Beach*, 56 Cal. Rptr 2d 223 (Ct. App. 1996) (finding a violation of state fair hearing standard where a neighbor-turned-councilmember sat in judgment but no federal due process violation because a discretionary permit is not a protected property interest); *Breakzone Billiards v. City of Torrance*, 97 Cal. Rptr. 2d 467, 484-92 (Ct. App. 2000) (rejecting a bias challenge to a conditional use permit denial).

⁸⁴ Killingley & Oakes, *supra* note 25, at 4-5.

⁸⁵ See Mathew D. McCubbins & Thomas Schwartz, *Congressional Oversight Overlooked: Police Patrols Versus Fire Alarms*, 28 AM. J. POL. SCI. 165, 166 (1984) (describing "fire-alarm oversight" as a decentralized oversight system in which rules and procedures enable "individual citizens and organized interest groups" to examine decisions and seek remedies); *but cf.* Eric Maskin & Jean Tirole, *The Politician and the Judge: Accountability in Government*, 94 AM. ECON. REV. 1034, 1034-35 (2004) (modeling accountability as a mechanism both for disciplining officials and pandering to public opinion).

⁸⁶ While the Due Process Clause does not apply to legislative activities, courts regularly entertain due process claims against local governments acting in an adjudicative capacity, and the line between legislative and adjudicative is particularly fuzzy in the local setting. See *U.S. v. Florida E. Coast Ry. Co.*, 410 U.S. 224, 245 (1973) (holding that constitutional due process requirements apply only to official action "designed to adjudicate disputed facts in particular cases"); Hans A. Linde, *Due Process of Lawmaking*, 55 NEB. L. REV. 197 (1976); Davidson, *supra* note 57, at 600-01 (articulating the prevailing view that "separation-of-powers principles simply do not apply at the local-government level").

⁸⁷ Oral comment can also be *counterproductive* to legal compliance, which is also a form of accountability. In Elk Grove, commenters leveraged public comment to punish officials complying with state law, while it took state intervention and a lawsuit to bring the city into compliance with stated law.

⁸⁸ ALEXIS DE TOCQUEVILLE, *DEMOCRACY IN AMERICA* 74-86 (F. Bowen ed., 1863).

on.⁸⁹ The modern descendants of this tradition run through the dignitary strand of due process, which treats being heard as a constituent of fair treatment in its own right,⁹⁰ and through the procedural-justice literature, where perceived voice is among the strongest predictors of whether people accept a decision as legitimate, including decisions that go against them.⁹¹

The dignitary intuition travels somewhat imperfectly to land use. In one sense, it simply provides a claim about how institutions should behave. Decisionmakers should hear the people their decisions affect because doing so respects them, and officials seem to know this, as demonstrated by their holding hearings the law does not require.⁹² The trouble begins where the intuition is converted into a legal right. Due process protects against deprivation of a cognizable property interest or legitimate entitlement under positive law.⁹³ The land-use commenter rarely holds such an interest. The neighbor objecting to new housing may care deeply about the block's character, view, or density, but positive law has generally declined to convert those concerns into entitlements.⁹⁴ Framing them as dignitary rights claims risks translating incumbent resistance into the language of legal injury.⁹⁵ The expressive case for participation is strongest as a civic and participatory good, and weakest when cast as a rights-based demand.

Brian Feinstein and Daniel Walters supply the strongest recent evidence that the public values participation in administrative decisionmaking. Their experiments show that people rate a (federal) agency as more legitimate, accountable, and trustworthy when it receives public input.⁹⁶ They argue that respondents continue to favor deliberative process even when it pushes a rulemaking months past the baseline. Its relevance to local land use is uncertain, however; the experiment concerns a technical national rulemaking, far removed from the local, adjudicative settings in which delay can

⁸⁹ John Stuart Mill, *Considerations on Representative Government*, in *ON LIBERTY, UTILITARIANISM, AND OTHER ESSAYS* 181, 223–24 (Mark Philp & Frederick Rosen eds., 2015).

⁹⁰ See Frank I. Michelman, *Formal and Associational Aims in Procedural Due Process*, in *DUE PROCESS: NOMOS XVIII* 126, 126–128 (J. Roland Pennock & John W. Chapman eds., 1977) (describing procedural participation as serving values independent of decisional accuracy); Jerry L. Mashaw, *Administrative Due Process: The Quest for a Dignitary Theory*, 61 *B.U. L. REV.* 885, 902–03 (1981); *People v. Ramirez*, 25 *Cal. 3d* 260, 267–68 (1978).

⁹¹ See TOM R. TYLER, *WHY PEOPLE OBEY THE LAW* 94–108 (1990).

⁹² See Kazis, *supra* note 49.

⁹³ See *Bd. of Regents of State Colls. v. Roth*, 408 U.S. 564, 569–71 (1972) (explaining that procedural due process applies “only to deprivation of interests encompassed by the Fourteenth Amendment’s protection of liberty or property”); *id.* at 577 (a protected property interest requires “more than a unilateral expectation” and instead requires “a legitimate claim of entitlement”).

⁹⁴ See *infra* Part III.A.

⁹⁵ One might say that property law is itself a machinery by which legal systems translate interests into the language of legal injury. But that translation still requires a recognition step, such as constitutional property’s requirement of a legitimate claim of entitlement. See *Roth*, 408 U.S. at 577. Even *Goldberg v. Kelly*—the high-water mark of the “new property”—attached process to a statutorily defined benefit. 397 U.S. 254, 261–62 (1970). As discussed in Part III, positive law has largely declined to recognize such interests in the neighbor context.

⁹⁶ Feinstein & Walters, *supra* note 18, at 34. The preference differences are admittedly a bit subtle: the aggregate affect score ranges only from roughly 4.6 to 5.1 on a seven-point scale against a 4.4 no-participation control, leaving little separating bare notice-and-comment from full deliberation and uncertainty in judging whether a half-standard-deviation gain warrants the costs.

immediately derail projects by costing developers their financing.⁹⁷ Alexander Love and Alexander Sahn instead directly surveyed nearly 2,000 federal rule commenters. They found that learning that an agency followed procedure has no effect on perceived legitimacy.⁹⁸ Instead, legitimacy arose only among commenters who prevailed and fell among those who lost.

We might then read Feinstein and Walters as documenting a stated appetite for participation among observers, and Love and Sahn as casting doubt on whether that appetite converts to legitimacy in reality. In this paper, with transcripts, we can similarly translate this question to revealed preferences and bring it to the local context, asking who actually takes up the opportunity that many purport to value. It also gets at the distributive question—if standing at the podium confers a dignitary or civic good, to whom do those values accrue? This paper will not, however, answer the highly valuable questions of whether commenting leaves people feeling heard, and whether it builds civic capacity over time. Answering those questions would take a survey instrument this paper does not yet deploy; they are valuable subjects for future work.⁹⁹

C. The Normative Case Against Local Participation

The affirmative case for local participation treats procedure as a way to discipline government. The opposing case begins from the concern that the same infrastructure can disable it. Hearings, comments, and review may reduce error, but they can also make action so slow, costly, or vulnerable that the status quo prevails by default. This Section frames that critique and identifies the specific claims Part II will test: participation may block projects outright, delay them, add costly conditions for approval, and generate the leverage for litigation.

1. *Abundance and Its Predecessors*

This critique is now most closely associated with the so-called “abundance movement,” though its roots are much older.¹⁰⁰ Most of the movement’s key analytic claims should be familiar to any social scientist or public-law scholar: scarcity is often artificial, procedure has costs, veto points accumulate, capacity matters, and rules written to prevent public harm can also prevent public goods. Abundance’s novelty is chiefly strategic. It has bundled these ideas into a recognizable center-left political program, supported by think-tank initiatives, advocacy networks, state and local organizations, policy roadmaps, and gubernatorial reform packages.¹⁰¹ California has enacted

⁹⁷ Additionally, the design makes the benefits of additional procedure salient, while leaving the costs of delay somewhat unclear to participants. Variation across additional policy schemes with different temporal stakes and further explanation of the costs of delay in each setting may have been helpful.

⁹⁸ Alexander Love & Alexander Sahn, *Policy, Procedure, and Public Trust in the Bureaucracy*, Working Paper (May 2026), https://osf.io/preprints/socarxiv/jyhma_v1.

⁹⁹ Cf. Alexander Sahn & Tyler Simko, *Issue Accountability Among Public Commenters*, Working Paper (July 2026), <https://osf.io/vxpc5/files/qn3rx> (following up with San Francisco land use commenters and finding that most accurately recall their past positions, but do not learn the subsequent policy action).

¹⁰⁰ See generally KLEIN & THOMPSON, *supra* note 18.

¹⁰¹ See Alex Thompson, *Exclusive: New Group Plots 2028 “Abundance” Agenda*, AXIOS (Apr. 30, 2026), <https://www.axios.com/2026/04/30/abundance-group-democrats-agenda>; *Inclusive Abundance Initiative Announces the Abundance Agenda*, INCLUSIVE ABUNDANCE (Apr. 29, 2026), <https://www.inclusiveabundance.org/abundance-in-action/inclusive-abundance-initiative-announces-the-abundance-agenda>; Matthew Meyers, *Niskanen’s Abundance-Related Policy Work*, NISKANEN CTR. (Sept.

housing and permitting reforms under an “Abundance Agenda.”¹⁰² New York has enacted a “Let Them Build” agenda.¹⁰³ Utah has announced a plan to “create an abundance of energy.”¹⁰⁴ National abundance conferences draw tens of thousands of attendees.¹⁰⁵ The sensibility has even reached the bench. In *Seven County Infrastructure Coalition v. Eagle County*, a majority of the Court described NEPA as having become a “blunt and haphazard tool” used to stop or slow infrastructure and construction—words that seem to echo those of abundance pundits.¹⁰⁶

These ideas inherit an old quarrel over how progressive government should balance effective administration against public constraint. Marc Dunkelman labels the two impulses Hamiltonian and Jeffersonian. The first builds by empowering leaders and expert administrators; the second guards against unaccountable power by arming citizens with procedure.¹⁰⁷ Robert Moses represents the Hamiltonian pole. Through a string of mostly unelected offices, he built New York’s state park system, major bridges, and 416 miles of parkway, all while pioneering institutional devices—especially the independent public authority—designed to insulate his decisions from public oversight.¹⁰⁸ Moses “love[d] the public, but not as people.”¹⁰⁹ That disregard helped produce grievous harms, including the destruction of lower-income neighborhoods for highways.¹¹⁰

9, 2025), <https://www.niskanencenter.org/niskanens-abundance-related-policy-work/>; Catherine Vaughan & Robert Joyce, *A Roadmap for Abundance*, ABUNDANCE N.Y. (Mar. 2, 2026), <https://abundancenyc.substack.com/p/a-roadmap-for-abundance>; Press Release, Rep. Josh Harder, *New Caucus: New Bipartisan Build America Caucus Launches to Support Pro-Growth Policies* (May 8, 2025), <https://harder.house.gov/media/press-releases/new-caucus-new-bipartisan-build-america-caucus-launches-to-support-pro-growth-policies>.

¹⁰² Press Release, Off. of Governor Gavin Newsom, *Governor Newsom Signs into Law Groundbreaking Reforms to Build More Housing, Boost Affordability* (June 30, 2025), <https://www.gov.ca.gov/2025/06/30/governor-newsom-signs-into-law-groundbreaking-reforms-to-build-more-housing-affordability/>.

¹⁰³ Press Release, Governor Kathy Hochul, *Let Them Build: Governor Hochul Signs Legislation That Delivers Generational Reforms to Make It Easier and More Affordable to Build Housing and Critical Infrastructure* (May 27, 2026), <https://www.governor.ny.gov/news/let-them-build-governor-hochul-signs-legislation-delivers-generational-reforms-make-it-easier>.

¹⁰⁴ Utah Off. of Energy Dev., *Operation Gigawatt: Powering Utah’s Energy Future*, <https://energy.utah.gov/homepage/about-us/operation-gigawatt/>.

¹⁰⁵ James V. DeLong, *Bottom-Up Abundance*, BREAKTHROUGH INST. (Sept. 8, 2025), <https://thebreakthrough.org/articles/bottom-up-abundance>; *The National Pro-Housing Conference*, YIMBYTOWN, <https://yimby.town/>.

¹⁰⁶ *Seven Cnty. Infrastructure Coal. v. Eagle Cnty.*, 605 U.S. 168, 183 (2025) (describing NEPA as having “transformed from a modest procedural requirement into a blunt and haphazard tool”); *id.* at 193 (Sotomayor, J., concurring in the judgment) (faulting the majority for “unnecessarily grounding its analysis largely in matters of policy”); *see also* Ian Milhiser, *The Supreme Court Wants to Make It Easier to Build*, VOX (May 29, 2025), <https://www.vox.com/scotus/414856/supreme-court-seven-county-eagle-railroad-abundance>.

¹⁰⁷ MARC DUNKELMAN, *WHY NOTHING WORKS* 1-30 (2025).

¹⁰⁸ ROBERT CARO, *THE POWER BROKER: ROBERT MOSES AND THE FALL OF NEW YORK* 6, 8, 10-13 (1974). *Id.* at 629, 632 (use of officials removable only for cause and elimination of public hearing requirements); *id.* at 173-175 (redefining “parks” to encompass parkways, bridges and other “appurtenances” and writing himself a term three times as long as the Governor’s); *id.* at 182-92.

¹⁰⁹ *Id.* at 318.

¹¹⁰ *See id.* at 850-94 (recounting the displacement of thousands of residents despite a purportedly feasible alternate route “just two blocks . . . to the south”). Moses likewise wielded public works to entrench racial segregation. *See id.* at 318-19 (steering Black patrons away from state parks and beaches); *id.* at 513-14.

Jane Jacobs and others supplied the corrective.¹¹¹ Against Moses's confidence that planners could see what a city needed, Jacobs argued that residents held knowledge no map or engineering report captured, and that neighborhoods needed power to resist public authority.¹¹² This decentralization hardened into law, particularly in the 1970s, as distrust of concentrated public and private power made disclosure, hearings, citizen suits, and judicial review the favored tools of restraint.¹¹³ The result is much of the legal participatory infrastructure catalogued in Part I.A.

The abundance critique begins where that infrastructure overshoots, or where safeguards built to stop bad projects have become general-purpose tools for stopping any project. Nick Bagley calls the reflex a "procedure fetish";¹¹⁴ Frank Fukuyama calls it "vetocracy."¹¹⁵ Housing is the central case because its political economy is particularly asymmetric. A new building's costs are concentrated, visible, and local; its benefits are diffuse, regional, and often years away.¹¹⁶ The homeowner who fears noise, lost parking, traffic, or a softer resale has every reason to participate. Yet neither the future tenant nor the worker priced into a longer commute is typically in the room. To address this asymmetry in the housing space, the abundance movement has pursued structural removal of veto points, often through preemption. Another strategy has been to organize the so-called "YIMBY" or yes-in-my-backyard movement gathering diffuse beneficiaries into an organized force to counter the perceived "NIMBY" (not-in-my-back-yard) status quo.

2. *The Costs of Participation on Development*

The live question is therefore how much participation to require, in what form, and at what stage. Even constitutional due process treats adjudicative procedure as something to be weighed rather than maximized; *Mathews v. Eldridge* weighs the value of additional safeguards against their administrative burden,¹¹⁷ and Bagley similarly describes procedural design as an optimization problem among efficiency, rights, and accountability.¹¹⁸ The abundance critique supplies a particular account of the burden side of that balance.¹¹⁹

¹¹¹ See JANE JACOBS, *THE DEATH AND LIFE OF GREAT AMERICAN CITIES* 3-5, 18-25 (1961) (attacking "orthodox city planning" and master-planned "order" imposed on existing city life); ANTHONY FLINT, *WRESTLING WITH MOSES: HOW JANE JACOBS TOOK ON NEW YORK'S MASTER BUILDER AND TRANSFORMED THE AMERICAN CITY* 62-65 (2009).

¹¹² See Jane Jacobs, *Downtown Is for People*, *FORTUNE* (Apr. 1, 1958), <https://fortune.com/article/downtown-is-for-people-fortune-classic-1958/>.

¹¹³ See generally PAUL SABIN, *PUBLIC CITIZENS: THE ATTACK ON BIG GOVERNMENT AND THE REMAKING OF AMERICAN LIBERALISM* (2021).

¹¹⁴ See Bagley, *supra* note 18, at 353-55.

¹¹⁵ See Francis Fukuyama, *Vetocracy and the Decline of American Global Power*, *PERSUASION* (Oct. 9, 2023), <https://www.persuasion.community/p/vetocracy-and-the-undermining-of-american-global-power>.

¹¹⁶ See Katherine Levine Einstein, David M. Glick & Maxwell Palmer, *Who Participates in Local Government? Evidence from Meeting Minutes*, 17 *PERSPS. ON POL.* 28, 29-30 (2019); Edward L. Glaeser, Joseph Gyourko & Raven E. Saks, *Why Is Manhattan So Expensive? Regulation and the Rise in Housing Prices*, 48 *J.L. & ECON.* 331, 331-33 (2005).

¹¹⁷ 424 U.S. 319, 348 (1976).

¹¹⁸ Bagley, *supra* note 18, at 352.

¹¹⁹ Calling these burdens "costs" assumes that the projects delayed or prevented by participatory procedures were otherwise worth building. Cf. Vicki Been, Ingrid Gould Ellen & Katherine O'Regan, *Supply Skepticism: Housing Supply and Affordability*, 29 *HOUS. POL'Y DEBATE* 25, 25-27, 33-34 (2019) (describing supply-skeptical objections to market-rate development and concluding that supply increases

The first and simplest mechanism is outright denial. On the strongest version of the abundance critique, participation produces literal vetoes in which organized residents attend hearings, pressure elected officials, and cause cities to reject housing projects that otherwise would have been approved.¹²⁰

The second mechanism is delay. A project need not be denied to be defeated. Land-use approvals primarily unfold after a developer has already sunk money into site control, design, environmental review, engineering, legal work, and financing.¹²¹ Time therefore changes the economic meaning of participation.¹²² A continuance, redesign demand, supplemental study, or repeated hearing may carry real costs like missed financing windows, expired purchase options, rising construction prices, and greater uncertainty. Delay is a natural consequence of layered administrative procedure and serves to tilt the field toward the status quo.¹²³

The third mechanism is conditioning. Participation may reshape a project enough to make it infeasible even with formal approval. Cities may add design requirements, parking changes, traffic mitigations, affordability commitments, or other concessions that reshape the project and increase its cost. Leah Brooks and Zach Liscow’s study of interstate highways provides the closest analogue. They attribute much of the post-1970 rise in highway costs to “citizen voice” expressed through statutes, litigation, and doctrine.¹²⁴ That voice appeared in more noise walls, elevated segments, ramps, and “wigglier” routes that avoided politically or physically difficult obstacles.¹²⁵ Each change may have made highways more responsive to real local harms, while also making them more expensive. Ezra Klein’s critique of “everything-bagel liberalism” describes the same dynamic in contemporary approvals, where the project-review stage becomes a forum for loading many desirable goals into a single development.¹²⁶ Approval therefore may remain nominally available, while the resulting project may be slower, costlier, or infeasible.

are critical to moderating prices while emphasizing that market-rate supply must be paired with subsidies and other tools to serve very low-income households).

¹²⁰ See, e.g., Jacob Anbinder, *New York NIMBYs Turn Against Democracy*, THE ATL. (Sept. 9, 2025), <https://www.theatlantic.com/ideas/archive/2025/09/new-york-nimbys-turn-against-democracy/684140/> (describing councilmember deference as allowing legislators to “kill housing proposals”); Jerusalem Demsas, *The Billionaire’s Dilemma*, THE ATL. (Aug. 4, 2022), <https://www.theatlantic.com/ideas/archive/2022/08/marc-andreessens-opposition-housing-project-nimby/671061/> (arguing that policymakers must “eliminate NIMBYism’s veto power”); Jake Blumgart, *Public Meetings Thwart Housing Reform Where It Is Needed Most*, GOVERNING (Mar. 17, 2022), <https://www.governing.com/now/public-meetings-thwart-housing-reform-where-it-is-needed-most> (describing housing review as “full of choke points”).

¹²¹ See Roderick M. Hills, Jr. & David Schleicher, *Planning an Affordable City*, 101 IOWA L. REV. 91, 95, 116-20 (2015) (arguing that parcel-by-parcel zoning bargaining raises costs for prospective developers, adds to the price of new housing, causes delay, and deters some housing proposals).

¹²² See Diego A. Zambrano, *Litigation Scar Tissue & Construction Costs*, IN RESEARCH HANDBOOK ON LAW AND TIME 168 (Frank Fagan & Saul Levmore eds., 2025).

¹²³ Bagley, *supra* note 18, at 367-69; Roderick M. Hills Jr. & David Schleicher, *How the Gentry Won: Property Law’s Embrace of Stasis*, 104 TEX. L. REV. 987 (2025).

¹²⁴ See Leah Brooks & Zachary Liscow, *Infrastructure Costs*, 15 AM. ECON. J.: APPLIED ECON. 1, 1-3 (2023).

¹²⁵ *Id.* at 18, 21.

¹²⁶ Ezra Klein, *The Problem with Everything-Bagel Liberalism*, N.Y. TIMES (Apr. 2, 2023), <https://www.nytimes.com/2023/04/02/opinion/democrats-liberalism.html> (cataloguing requirements

The final mechanism is litigation, though the result of litigation is often delay or increased bargaining leverage to extract further conditions. The record-making machinery that makes participation visible also manufactures the material for expensive lawsuits through comments that build the administrative record that CEQA and related challenges run on, so the hearing doubles as discovery for the lawsuit to follow.¹²⁷

Surprisingly little evidence exists as to the prevalence and relative magnitude of any of these potential costs. Part II turns to that missing evidence.

II. The Empirical Reality of Local Participation

Part I's framework asks what local participation is for and what its theorized costs might be. This Part asks how it performs, taking those governance values to a record of what happens in the room using a novel dataset of city council transcripts. I choose to focus on city council meetings as the broadest and most emblematic venue of local participation. City councils are elected generalist bodies whose agendas run the full range of local governance. They are also the final decisionmakers on both the legislative groundwork that defines permissive space for new development and the bodies that hear appeals from below.

A. Data Overview

Until recently, studying local public participation has meant studying agendas or minutes, often in one or a select number of relatively homogeneous jurisdictions.¹²⁸ The claims that follow draw upon a far larger and more granular corpus, built and validated in a companion methods paper, consisting of over 25,000 city council meeting transcripts across 115 California municipalities from 2015 through 2024, comprising over 75,000 hours of recorded deliberation and over 80,000 public commenters linked to voter registration and property ownership records.¹²⁹

The sample covers 75 of California's 100 largest cities and roughly 52% of the state's population, from Burlingame (population 30,000) to Los Angeles (nearly four million), and from rural Porterville to dense San Francisco.¹³⁰ Cities range from a 6% White share of the population

ranging from minority contractor preferences to “access to child care for facility and construction workers”).

¹²⁷ See Zambrano, *supra* note 122 (describing how CEQA and similar litigation can impose costs through process, delay, and settlement leverage, and how project-specific responses to that litigation accumulate into persistent “litigation scar tissue” carried forward by developers, cities, and consultants).

¹²⁸ See, e.g., Einstein, Glick & Palmer, *supra* note 116; Alexander Sahn, *Public Comment and Public Policy*, 69 AM. J. POL. SCI. 685 (2024) (San Francisco Planning Commission minutes). The largest existing transcript corpus, LocalView, draws only from YouTube (where only roughly half of California cities post meetings), is not diarized, and provides limited coverage of meetings within each town even where a YouTube channel exists. Soubhik Barari & Tyler Simko, *LocalView, A Database of Public Meetings for the Study of Local Politics and Policy-Making in the United States*, 10 NATURE SCI. DATA 1 (2023).

¹²⁹ For full details on construction and validation of the dataset, see Olivia Martin & Amar Venugopal, *Participation and Representation in Local Government Speech*, arXiv:2604.21202 (2026), <https://arxiv.org/abs/2604.21202>. Note that the dataset predominantly precedes the state's CEQA reforms, which took effect on June 30, 2025. See *infra* Part III.B.2.

¹³⁰ Due to the focus on larger cities, sample cities are somewhat denser, wealthier, and less Hispanic than the state as a whole. Martin & Venugopal, *supra* note 129 at 6.

to 78%; median household income from \$54,000 to over \$250,000; and median home value from \$281,000 to over \$2 million. The corpus was constructed using speech-recognition and speaker-diarization deep learning models to convert raw audio and video into speaker-level transcripts. A large language model then segmented each transcript into agenda items and unagendized comment, identified speakers and their government affiliation, recorded vote tallies, and sorted items into policy domains. Identified commenters were matched to the voter file and to property records. Each step was validated against human hand-coded labels. The model and human coders agree on whether a speaker is a member of the public or a government official, on the names of public speakers, and on whether and how the council voted.¹³¹ The companion paper reports the prompts, confusion matrices, and match diagnostics in full.¹³²

The resulting picture of city government is one of frequent and lengthy deliberation. The average city meets twice per month for about three hours, though meetings run long. Ten percent of meetings are at least five hours and one percent—still hundreds of meetings—run eight hours or more. A typical meeting features 16 speakers from across city government (including councilmembers) and 12 members of the public, and works through about 13 distinct issues, ranging from agendized items like a “Gas-Powered Leaf Blower Ban” to unagendized general comment on “Waste Management Noise Complaints.” Roughly half of issues take public comment and 43% include a council vote. Of the 160,000 votes in the corpus, about a third are procedural—a vote to introduce an ordinance on a first reading, to refer to committee, to continue to the next meeting—and the remaining two-thirds are final votes to approve, adopt, or deny.¹³³ Procedural votes are more common still in land use, where 43 percent are procedural rather than final decisions or outcomes.

Councils are also strikingly unanimous. Only one percent of votes fail (nays exceed yeas) and 87% of votes are entirely unanimous. Some of this consensus is a function of scale, as unanimity is easier to achieve in a five- or seven-member body than in a large legislature. But the pattern remains even after excluding categories that might mechanically inflate agreement. Final votes are more likely to be unanimous than procedural votes, 88% compared to 78%. Ceremonial business—proclamations, commendations, honors—is nearly always unanimous at 95%, but it is too rare to move the total, which holds at 87% once it is removed. Consensus therefore arises as a central

¹³¹ The model and human coders agree on whether the council voted 97 percent of the time and the exact tally 96 percent of the time. They agree 87 percent of the time on whether a speaker is a government official, and the model recovers roughly 84 percent of the surnames human coders identify, and about 78 percent of the names it produces are corroborated. Most disagreements attach a real name to the wrong speech segment rather than invent one, and uncorroborated model names that nonetheless matched a voter record are under 2 percent of the validation sample.

¹³² The matching of speakers to the voter file is conducted by a deterministic matching algorithm; the language models in the pipeline classify only the public statements of individuals who have selected to address a legislative body in an open, recorded session. Moreover, my LLM use operated under Google Gemini API’s paid quota tier (under Stanford’s Google Cloud agreement), which does not train on the data it receives (unlike the free, non-institutional tiers). See Gemini API Additional Terms of Service, Google AI for Developers, <https://ai.google.dev/gemini-api/terms>. Additionally, results are reported in aggregate, and no commenter is identified in this Article (other than in one case when the commenter had filed public litigation against the city).

¹³³ This classification was conducted on full meeting transcripts by the LLM as part of the vote extraction described in Martin & Venugopal, *supra* note 129 at 6-7.

feature of how these councils decide, and a ceiling on the types of effects we can attribute to public commenters' efforts to stir up debate or "win" votes.

B. Participation as Democratic Preference Elicitation

As Part I argued, participation's democratic case depends on representative voice. Local hearings are supposed to surface the preferences of the community affected by a decision. The threshold empirical question is therefore simple: who actually shows up? If commenters do not resemble the residents whose preferences they are taken to express, the canonical case for local participation begins on unstable ground.

The most systematic prior evidence comes from Katherine Einstein, Maxwell Palmer, and David Glick, who coded roughly 3,000 participants in 97 metropolitan Boston planning and zoning meetings between 2015 and 2017.¹³⁴ They matched 83 percent of speakers to voter records and found that participants were, on average, eight years older and substantially more likely to be male than the voting population. My dataset extends the approach by an order of magnitude with over 80,000 linked participants across 115 California municipalities, covering city council meetings rather than only planning and zoning hearings, over a full decade. I find that approximately 1.5 in 1,000 registered voters speak at a meeting in a given year. By comparison, 888 in 1,000 registered voters voted in 2024 and 755 in 1,000 voted in the 2022 midterms.¹³⁵

In contrast to the theory's aspirational claims for the democratic advantage inherent in smaller political entities, meeting participation looks like other high-intensity, high-resource forms of political participation. As shown in Table 1, compared with registered voters in the same city and year, meeting speakers are older (+4 years), less likely to be female (-5 percentage points), more likely to be Democrats (+6 p.p.), substantially more likely to be of White non-Hispanic origin (+16 p.p.) and more likely to be homeowners (+4 p.p.). These gaps are smaller than the canonical "neighborhood defenders" venue of zoning meetings in suburban Boston studied by Einstein, Glick, and Palmer. Their participants had roughly twice as large age and gender gaps and significantly larger homeowner-renter gaps, though significantly smaller race gaps, which might make sense in the more niche setting of zoning meetings.¹³⁶

¹³⁴ Einstein, Glick & Palmer, *supra* note 116 at 31–33 (finding that commenters were, on average, 7.8 years older and 8 percentage points less likely to be female than voters).

¹³⁵ U.S. Census Bureau, *Reported Voting and Registration of the Total Voting-Age Population, for States: November 2024*, tbl. 4a (2025), https://www2.census.gov/programs-surveys/cps/tables/p20/587/vote04a_2024.xlsx; U.S. Census Bureau, *Reported Voting and Registration of the Total Voting-Age Population, for States: November 2022*, tbl. 4a (2023), https://www2.census.gov/programs-surveys/cps/tables/p20/586/vote04a_2022.xlsx (calculating reported-voter turnout among reported registered voters by dividing reported voters by reported registered voters: 154.308 million / 173.854 million in 2024, and 121.916 million / 161.422 million in 2022).

¹³⁶ Commenters are 12 percentage points more likely than voters to be over fifty, compared with 22 points in their study; 5 percentage points less likely to be women, compared with 8 points; and 4 points more likely to be homeowners, compared with 28 points. The racial gap, however, is larger in my sample: White non-Hispanic commenters exceed their share among voters by 16 points, compared with an 8-point white-voter gap in their study. Katherine Levine Einstein, David M. Glick & Maxwell Palmer, *Neighborhood Defenders: Participatory Politics and America's Housing Crisis*, 135 POL. SCI. Q. 281, 298–300 (2020).

	Participants		Non-Participants		Difference
	<i>N</i>	<i>Mean</i>	<i>N</i>	<i>Mean</i>	
Age	107,788	52.596	75,761,347	48.133	4.463***
Female	107,077	0.478	74,384,571	0.526	-0.049***
Democratic	107,788	0.537	75,761,347	0.482	0.055***
White non-Hispanic	99,214	0.623	69,394,181	0.459	0.164***
Homeowner	69,320	0.740	44,230,094	0.703	0.037***

Table 1: Difference in Means Between Participants and Non-Participant Registered Voters¹³⁷

A sharper comparison is to the voters who actually participate in low-salience municipal elections. That benchmark is necessarily limited, because many local contests are now consolidated with larger elections, but twelve elections in the transcript corpus sample provide a useful comparison.¹³⁸ Relative to these local voters, commenters still skew meaningfully Whiter, by about 6 to 9 percentage points. The age gap, however, disappears and even reverses; commenters are less likely than local voters to be over 50. In short, moving from all registered voters to likely municipal voters narrows much of the representational critique, but the racial disparity remains.

Organized participation might, in principle, do the representative work that individual participation does not. Overall, roughly 60 percent of public speaker appearances are from individuals, and the rest are from people purporting to speak on behalf of a group. Across all meetings and specifically discussions related to land use, the most common organizational affiliation is being associated with a business (19 percent)¹³⁹, followed by advocacy organizations (14 percent),¹⁴⁰ service nonprofits (13 percent),¹⁴¹ and civic organizations (7 percent).¹⁴² The modal speaker from an organization therefore represents a business rather than an underrepresented constituency, though some advocacy organizations may represent underrepresented groups like renters or racial minorities.

If I restrict my sample to land-use items, the closest analog to planning and zoning hearings, the gender gap doubles to match theirs. Further restricting to demographically Boston-like suburbs closes part of the age difference as well, but not the race difference. I in part ascribe this to the much whiter populations they study, which places an arithmetic ceiling on their racial gap. *See* Appendix § 2.4.

¹³⁷ Differences and significance come from Welch's two-sample t-tests treating each voter as an independent observation. Significance persists in a logistic regression with city and year fixed effects and city-level clustered standard errors. *See* Martin & Venugopal, *supra* note 129 at 19.

¹³⁸ The four standalone municipal contests are San Leandro in 2022, and Downey, Inglewood and Vacaville in 2023. The eight 2021 odd-year elections are in Riverside, Santa Barbara, Inglewood, Carson, San Jose, Los Gatos, Hemet and Rosemead.

¹³⁹ Note the similarity here to the literature on federal notice-and-comment and FOIA processes being dominated by businesses. *See* Yackee, *supra* note 63; Margaret B. Kwoka, *FOIA, Inc.*, 65 DUKE L.J. 1361 (2016). For a full breakdown of stated organizational affiliations, *see* Appendix § 2.2.

¹⁴⁰ Example advocacy organizations: NAACP, Moms Demand Action, and Alameda Renters Coalition.

¹⁴¹ Example service nonprofits: American Heart Association, Habitat for Humanity, and Eden Housing.

¹⁴² Example civic organizations: League of Women Voters, American Red Cross, Boys & Girls Club.

More participation also does not mean more representative participation. In nearly every one of the 115 cities in the sample, the age gap is positive, the White non-Hispanic gap is positive, and the female gap is negative. Per-capita participation varies by roughly a factor of six across cities and rises sharply with educational attainment and income. Yet the cities that draw the most participation are not the ones whose participants come closest to mirroring their communities. The age gap is, if anything, wider where participation is higher; the White non-Hispanic gap is flat across the distribution, and only the female gap narrows.

The most extreme form of unrepresentativeness is participation by quite literally the *same* people, or “repeat speakers.”¹⁴³ Most unique participants appear once, but the 26% who do return supply 62% of all appearances. The average repeater speaks at 16.9 meetings and the tail is long. In dozens of city-years, a single resident attended every council meeting the town held. For example, Denise Barton in Santa Monica appears at nearly 100 meetings across the sample period.¹⁴⁴ Unsurprisingly, repeat speakers are also significantly older, more White, more Democratic, and more likely to be male, though not necessarily more likely to be homeowners.

Demographics are one proxy for preference representation. The data can also signal direct preferences. For each public comment in a land-use discussion, I use an LLM to score the speaker’s expressed stance toward the more development-oriented outcome on the issue on a continuous –1 (opposed) to +1 (supportive) scale.¹⁴⁵ Once developers, consultants and business representatives are removed, the remaining “ordinary public” is slightly opposed to development. Strongly anti-development comments make up roughly 39% of non-applicant comments, against roughly 36% strongly pro-development, with the remainder neutral or mixed.¹⁴⁶ This divide is narrower than the neighborhood-defenders literature might lead one to expect—opponents barely outnumber project supporters, not the lopsided margins a “tyranny of the neighbors” account implies. The gap is also remarkably stable over the past decade. Localized YIMBY mobilization is visible in some heavily organized cities, like Berkeley, where pro-housing turnout has in some years pushed average sentiment positive, though even these shifts are intermittent.

Direct benchmarking is impossible because we do not observe the preferences of the local nonparticipants. We can, however, compare the comments to survey evidence. Nationally, 66 percent of Americans support requiring local governments to approve housing that meets clear

¹⁴³ Such participation was a concern for the Biden Administration, which encouraged reforms in the federal regulatory review process to “ensure access to those who have not historically requested such meetings” and to “discourag[e] meeting requests that are duplicative.” See Exec. Order No. 14,094, Modernizing Regulatory Review, 88 Fed. Reg. 21,879 (Apr. 6, 2023).

¹⁴⁴ She also filed a \$1.7 billion claim against the city for assorted grievances. Ashley Archibald, *Resident Files \$1.7B Claim with City Hall*, Santa Monica Daily Press (Aug. 14, 2012) <https://www.smdp.com/resident-files-1-7b-claim-with-city-hall/>.

¹⁴⁵ Full methodology and validation in Appendix § 3.1.

¹⁴⁶ Debaised estimates are similar. See Appendix § 3.1. Pro-development comment concentrates in discussions of homelessness services and affordable-housing programs—largely supportive comment on shelters and heavily subsidized projects. Excluding those conversations (22% of scored comments), the divide over market-rate development is starker: 43% anti versus 33% pro. Pro-development commenters disproportionately invoke affordability and economic opportunity, while opponents concentrate on traffic, crime, schools, environmental impact, and aesthetics—a divide between economic-necessity framing and neighborhood-preservation framing. See Martin & Venugopal, *supra* note 129 at 27.

standards, and more than 80 percent support allowing more apartments near transit or on church and college land.¹⁴⁷ Californians are similarly supportive even when asked about building close to home, with 64 percent favoring more housing in their own city or community.¹⁴⁸ A net-opposed or even net-neutral participating public therefore sits uneasily against a broader public that, even in its own backyard, favors more housing in the abstract.¹⁴⁹

The democratic case for local participation rests on the hope that smaller scale and geographic closeness make public preferences easier to hear. The evidence shows that meeting speakers are older, more male, Whiter, and more likely to own their homes than registered voters in the same city and year. Some of these gaps shrink against the sharper benchmark of municipal voters, but a racial gap remains. Nor does greater participation solve the problem—cities with more speakers do not have more representative speaker pools. On land use, the participating public leans anti-development, though by a narrower margin than the strongest neighborhood-defenders account would predict. Local participation therefore supplies some preference information, but it is only a weak democratic proxy for the community whose preference it is taken to express.

C. Participation as Objective Information Transmission

Part I framed the informational case for participation as a claim that residents may know facts about a place that city officials, especially capacity-constrained ones, would otherwise miss. This Section tests that claim in the land-use setting by asking whether public comments contain novel, decision-relevant information, and whether councilmembers appear to take that information up in deliberation.

a. Supply of Information

To examine what information residents contribute to local decisions, I narrow to the topic where local knowledge is both most vaunted and contested: land use and housing.¹⁵⁰ The corpus

¹⁴⁷ Searchlight Inst., *What Americans Think About Housing* (Sept. 19, 2025), <https://www.searchlightinstitute.org/research/what-americans-think-about-housing/>; Alex Horowitz & Tushar Kansal, *Survey Finds Large Majorities Favor Policies to Enable More Housing*, PEW CHARITABLE TRS. (Nov. 30, 2023), <https://www.pew.org/en/research-and-analysis/articles/2023/11/30/survey-finds-large-majorities-favor-policies-to-enable-more-housing>.

¹⁴⁸ Mark Baldassare et al., *Californians and Housing Affordability*, PUB. POL'Y INST. OF CAL. (Sept. 2017), <https://www.ppic.org/publication/californians-and-housing-affordability/> (64% of Californians favor building more housing in their own city or community—Central Valley 72%, San Francisco Bay Area 70%, Los Angeles County 63%—with renters favoring it more than homeowners, 73% to 55%). The tilt toward state action persists in later waves: about 60% think the state should require localities to build their “fair share” of affordable housing, against roughly 40% who would leave the decision to local government. Dean Bonner, *Desire for Action on Housing Contrasts with How Californians Want to Live*, PUB. POL'Y INST. OF CAL. (Aug. 8, 2023), <https://www.ppic.org/blog/desire-for-action-on-housing-contrasts-with-how-californians-want-to-live/>.

¹⁴⁹ “In the abstract” is an important qualifier. It is much easier to support good things in the abstract without being confronted with concrete costs.

¹⁵⁰ The corpus is organized into ten topics. “Land Use, Zoning, and Urban Development” captures rezonings, entitlements, subdivisions, and project-level development decisions, while “Housing Stability and Homelessness Services” captures housing-element planning, affordability mandates, and homelessness response. See Martin & Venugopal, *supra* note 129, at 6-7, for details on topic discovery and classification.

contains 7,785 distinct land-use discussions that produce nearly 46,000 public comments. The measurement pipeline proceeds in three steps. First, I apply a comment-level filter that passes each comment, paired with a summary of the issue discussed, to an LLM that flags whether it offers any specific factual information, observation or knowledge beyond pure preference.¹⁵¹ Roughly 83% of land-use comments clear this bar. Second, for each comment, the model pulls out up to five distinct factual claims, prioritizing the most specific and verifiable.¹⁵² This yields 86,157 claims across the corpus, or about 2.3 per expertise-bearing comment. Third, each claim is independently scored on seven binary attributes that proxy for different dimensions of usefulness, grouped into three conceptual buckets. *Credibility* covers whether the claim is firsthand (the speaker personally witnessed or measured it), grounded in an expert basis (the speaker invokes professional credentials), or drawn from external data (a named statistic or study). *Relevance* speaks to whether the claim is decision-relevant to the matter under consideration and site-specific to the property or location at issue. *Novelty* covers whether the claim is plausibly asymmetric¹⁵³—i.e., information unlikely to already appear in the staff report or briefing materials—and whether it corrects the record by challenging a factual statement on the record. This scheme draws on a substantial prior literature coding individual public comments along multiple dimensions of informational content.¹⁵⁴

This paper treats the two as a single land-use/housing universe because the line between regulating land and producing housing is porous in practice.

¹⁵¹ See Appendix § 3.2 for full prompt, methodology, and validation. An example of a comment stating pure preference: “I just want to thank you for putting this item on the agenda and encourage you to approve it and banning all cigarettes, including e-cigarettes.” An example of a comment that includes a factual claim as well as preference: “I unfortunately saw a young boy get hit by a car while trying to jaywalk across Stevens Creek Boulevard in order to get to Stevens Creek School . . . I’d hate to see that happen to any other child ([continuing on to advocate for building a bridge across the street]).”

¹⁵² I prioritize verifiable assertions because informational value is easier to assess when interested speakers supply claims that can in principle be checked. See generally Paul Milgrom & John Roberts, *Relying on the Information of Interested Parties*, 17 RAND J. ECON. 18 (1986).

¹⁵³ Asymmetry is closest to the theoretical case for public input: comment is most valuable when residents possess information unavailable to staff. See, e.g., Hayek, *supra* note 73.

¹⁵⁴ See, e.g., Mariano-Florentino Cuéllar, *Rethinking Regulatory Democracy*, 57 ADMIN. L. REV. 411, 429–31 (2005) (coding comment “sophistication” along multiple dimensions); Nina A. Mendelson, *Foreword: Rulemaking, Democracy, and Torrents of E-Mail*, 79 GEO. WASH. L. REV. 1343 (2011); Brian Libgober & Steven Rashin, *What Public Comments During Rulemaking Do (and Why)*, 51 AM. POL. RSCH. 715 (2023). Prior work has focused on written federal rulemaking comments, often submitted by sophisticated repeat players for whom measures of comment quality include legal argument, policy analysis, and empirical support. This Article studies predominantly oral, lay testimony, where the analogous measures of credibility are somewhat different.

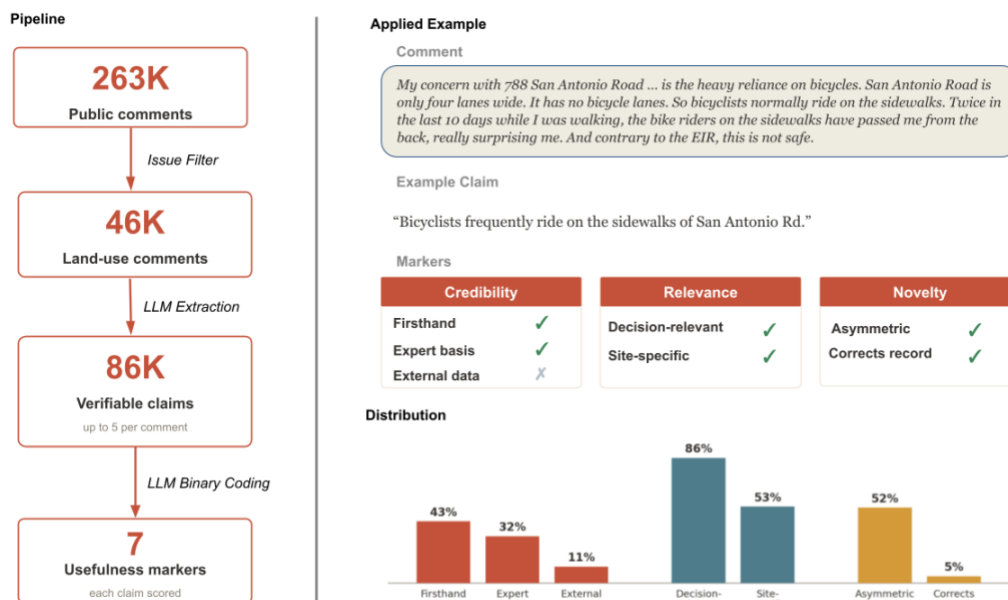


Figure 2: Pipeline, Applied Example, and Distribution of Comment Claim Attributes

Figure 2 illustrates what the pipeline does. Consider the following comment from a Palo Alto resident opposing the certification of an Environmental Impact Report for a proposed housing development:

My concern with 788 San Antonio Road ... is the heavy reliance on bicycles. San Antonio Road is only four lanes wide. It has no bicycle lanes. So bicyclists normally ride in the sidewalks. Twice in the last 10 days while I was walking and the bike riders on the sidewalks have passed me from the back, really surprising me. And contrary to the EIR, this is not safe.

The pipeline pulls out several distinct claims. "San Antonio Road is four lanes wide" scores as site-specific and decision-relevant but not asymmetric, as lane counts are standard packet material. "Bicyclists frequently ride on the sidewalks of San Antonio Road" scores as firsthand and expert-based (in an earlier part of the comment, the resident explains that she is a retired traffic analyst from another city), as well as site-specific, decision-relevant, asymmetric, and record-correcting (she is at least attempting to correct the record of the EIR).

Applying this methodology more broadly, I find that the modal land-use comment pairs a preference with at least one fact-shaped claim. Across the claims, 86% are decision-relevant; 52% are asymmetric (information unlikely to be in the staff report); 43% are firsthand; 32% rest on a claimed expert basis; 11% cite external data; and 5% explicitly attempt to correct the record.¹⁵⁵ The best indicators of usefulness likely lie in the joint distributions of attributes; for example, roughly 45 percent of land-use comments contain at least one claim that is both decision-relevant *and*

¹⁵⁵ One concern is that these measures are inflated by developers and applicants rather than ordinary public commenters. The results are similar after excluding those speakers; the main change is that claims coded as having an expert basis fall from 32% to 21%.

asymmetric, arguably the conjunction that maps most directly onto the localized-expertise theory's case for soliciting public input.

The asymmetric flag is a particularly consequential attribute and also the most subjective because it asks the classifier to guess what the council already knows from staff. I therefore validate it against the briefing materials councilmembers actually received. For a sample of 28 recent project-specific land use votes, I scrape the full agenda packets from council websites, which include staff reports, exhibits, EIR materials, and attached studies. For each of the 449 decision-relevant claims from those meetings, I ask an LLM whether it was substantively present in the packet (a straightforward task). The LLM agreed 76 percent of the time, with false negatives outnumbering false positives, suggesting that the 52 percent asymmetric rate is an underestimate.¹⁵⁶

b. Demand for Information

So far, the figures presented have described the information *supplied* to councilmembers. But perhaps the best measure of usefulness is behavioral: whether councilmembers actually use the information residents supply. As a lower bound, I measure how often councilmembers explicitly cite public comments.¹⁵⁷ Within land use discussions, I begin with roughly 26,000 councilmember speaking turns that name a speaker, refer to public testimony, frame the turn as responsive, or acknowledge a point's validity.¹⁵⁸ An LLM then reviews these candidates and refines them down to 9,000 turns that appear to cite a public commenter from the same meeting. The measure is intentionally generous in that it counts the act of citation rather than any effect on the vote and counts a councilmember's dismissal of a commenter and adoption of a commenter's suggestion equally as uptake. Figure 3 illustrates the pipeline and the main results.

¹⁵⁶ False positives, claims flagged asymmetric that the packet in fact contained, are 18%, typically applicant-side narrative the classifier did not anticipate. False negatives are more common at 29%: claims tagged non-asymmetric that turned out to be missing from the packets, usually where the model assumed standard project specifications like parking ratios would appear in staff reports when they did not.

¹⁵⁷ This is only an observable-uptake measure and therefore almost certainly understates actual use; however, citation patterns are a common proxy in the field. Cf. Cassandra Handan-Nader, *Do Fake Online Comments Pose a Threat to Regulatory Policymaking? Evidence from Internet Regulation in the United States*, 15 POL'Y & INTERNET 100, 104–09, 113 (2023) (identifying comments cited in the FCC's final order); Jason Yackee & Susan Yackee, *Administrative Procedures and Bureaucratic Performance: Is Federal Rule-Making 'Ossified'?*, 20 J. PUB. ADMIN. R. & THEORY 261 (2010) (measuring interest-group influence by comparing public comments with final-rule content); Spangher et al., *supra* note 63 (matching comment claims to agency responses and final-rule changes).

¹⁵⁸ The regex is intentionally high recall. Full pattern code and synonym list in Appendix § 4.

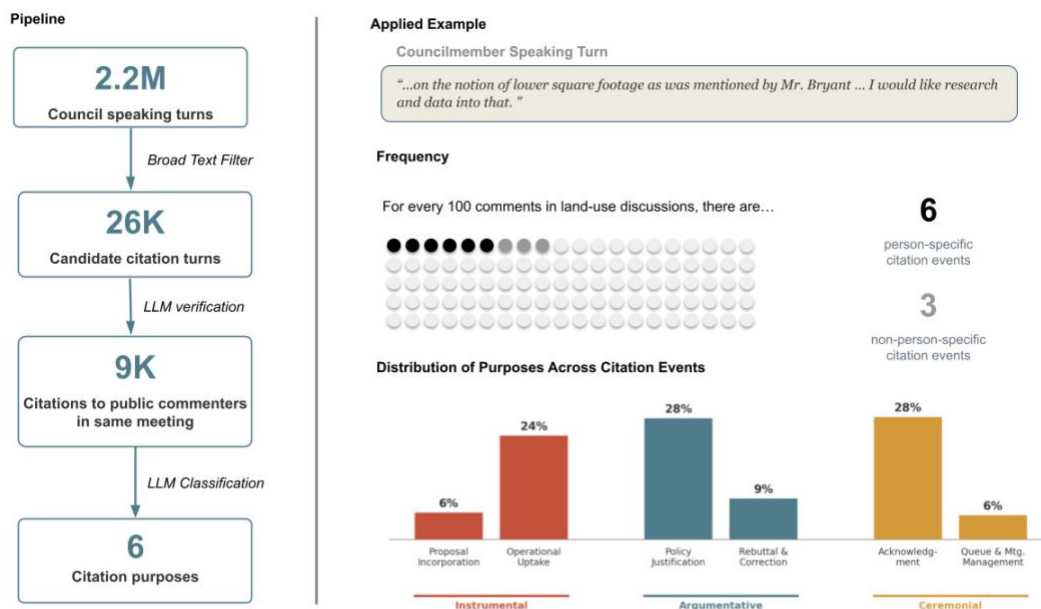


Figure 3: Pipeline, Applied Example, and Distribution of Councilmember Citation Purposes

I find that a councilmember directly cites a public commenter from that same meeting in about one third of land-use discussions. Another way to see this is in relation to comment value. For every 100 comments, 45 contain at least one plausibly asymmetric and decision-relevant claim. Roughly 6 comments receive a person-specific citation from a councilmember, and another 3 produce a non-person-specific reference (e.g., “a lot of people in the audience said...”). Comments therefore rarely elicit direct engagement from councilmembers. The citation rate is lower than the closest federal notice-and-comment benchmark, where recent research finds noticeable agency responses to 20 to 60 percent of comments, but the gap is unsurprising—local testimony is oral and informal, and councilmembers face weaker legal pressure to respond than agencies reviewing written comments.¹⁵⁹

Councilmembers cite a public comment for various purposes, some more substantive than others. An unsupervised topic discovery and classification approach yields six broad purposes.¹⁶⁰ The most common mode is *policy justification* (28%), in which a councilmember invokes public concern to support a position, as when a mayor cites members of the public “who expressed that concern” to pressure an applicant for deed restrictions. The next most common mode is *operational uptake* (28%), which routes a commenter’s specific point back to staff or onto the agenda for further work. *Rebuttal or correction* (9%) covers councilmembers pushing back on a commenter’s claim, often by reading from staff materials. *Proposal incorporation* (6%) is perhaps the most explicitly substantive, covering when a councilmember folds a suggestion from a commenter directly into a motion or condition of approval. The remaining citations look like ceremonial acknowledgment

¹⁵⁹ Spangher et al., *supra* note 63.

¹⁶⁰ Full methodology in Appendix § 4.

(e.g., thanking an individual for their comments with no further discussion). Of these, operational uptake and proposal incorporation look most like a meaningful sharing of localized expertise.

These findings suggest that the local expertise channel is not empirically empty. Public comments do supply asymmetric, decision-relevant, firsthand observations at meaningful rates. The demand side, however, is thinner. Roughly one in ten comments generates a councilmember citation, and only a third of those citations show information clearly moving from resident to council. The resulting picture instead falls somewhere between informational theater and a robust exchange of locally grounded expertise.

D. Participation as Accountability

Meetings are where residents produce the raw material of accountability, like allegations, demands for explanation, and contestations of facts. This section asks how much accountability work public comment does, what kinds of claims it makes, and how those claims hold up when checked against primary sources.

I first isolate the comments appearing to do accountability work. A comment qualifies when it holds officials, staff, or developers to account by questioning the fairness of a process, alleging a broken promise or procedural violation, demanding an explanation or transparency, or pressing a decisionmaker to justify its conduct. Mere disagreement does not count. Opposing a decision qualifies only if it invokes a duty, a failure or a violation. So defined, accountability comments make up 17 percent of agendized public comment in the land use domain.

What do these comments press for? I derive the scheme inductively as before by generating a free-text description of the accountability “move” each comment makes for a random sample of 300 accountability-coded comments, using an LLM to distill these descriptions into a parsimonious set of seven registers, and classifying each comment against the resulting scheme, described in Table 2. The registers are not mutually exclusive—58 percent of comments invoke two or more—and they are dominated by process. Nearly half allege that a required procedure was not followed, and over a third that the public was not genuinely heard. This is somewhat striking. In other words, the participatory apparatus that was built to let residents police official conduct is to a substantial degree occupied policing the apparatus itself. This is not necessarily an indictment—procedural violations may proxy for substantive misconduct that is harder to observe—but it raises the possibility that procedural mandates are self-undermining of procedural legitimacy. If each layer of required process creates new grounds to feel wronged by process, more participatory mandates create more opportunities for participation’s content to focus on complaints that participation was denied.

Accountability-related comments are most valuable if they make colorable claims of official misbehavior. Two registers stand out as the most readily independently falsifiable: epistemic misrepresentation—the charge that officials, staff, or applicants are misleading the public with dishonest data or analysis (30 percent of accountability comments)—and procedural and legal fidelity (48 percent).

VOICE OR VETO?

Comment Category	Prevalence	Description
Procedural and legal fidelity	47.7%	Whether the required process, notice, or environmental-review step was followed
Participatory legitimacy	37.0%	Whether the public was genuinely heard, or whether engagement was foreclosed, perfunctory, or restricted
Epistemic misrepresentation	30.2%	An allegation that officials or developers deployed dishonest or bad-faith data or analysis, as distinct from a good-faith factual disagreement
Distributive equity	24.8%	Disparate harm to a marginalized or protected group
Performance and commitment enforcement	22.9%	A demand that a prior promise be honored or an existing code enforced
Ethical integrity	15.8%	Allegations of conflict of interest, favoritism, or improper influence
Jurisdictional authority	7.8%	Contests over which body—state or local, administrative or elected—is entitled to decide

Table 2: Classification of Accountability-Related Comments

To assess whether such claims hold up, I reviewed a random, stratified sample of 50 flagged comments—25 from each register—and checked each against the primary record consisting of staff reports, environmental documents, agendas and minutes, prior hearings, and litigation records. Clean verdicts are scarce in both directions. Of the misrepresentation claims, six are fully corroborated and eight are flatly contradicted; the other eleven have a kernel of truth but are stated as something stronger. Similarly, among the procedural comments, the core charge clearly stands in eight, clearly fails in five, and partly holds in twelve. If we were to extrapolate from these case studies, the typical accountability comment emerges as a real grievance, pushed somewhat past what the record will bear.

I call a claim contradicted when the contemporaneous written record directly refutes it. In Alameda, for example, the council considered rehabilitating eleven vacant structures built in 1942 for a World War II training facility, converting them into 90 units of senior housing, interim homeless housing, and medical clinics; only one building would be demolished, and the rest would be rehabilitated.¹⁶¹ One resident who instead wanted the facility recognized as a historic resource claimed that the city’s architectural report was “misleading” because it did not conduct “any new research” and that the firm “didn’t even look right here.” But the report identified a site visit conducted just a month earlier as a core part of its methodology and concluded the complex lacked

¹⁶¹ City of Alameda, McKay Wellness Center (Alameda Federal Center Reuse Project): Initial Study & Mitigated Negative Declaration 1-3 (Sept. 2018), <https://www.alamedaca.gov/files/assets/public/v/1/departments/alameda/city-manager/mnd.pdf>; City of Alameda, Addendum to an Initial Study/Mitigated Negative Declaration for the McKay Wellness Center (Alameda Federal Center Reuse Project) 1-2 (May 6, 2021), <https://alameda.legistar.com/View.ashx?GUID=A08A6AAF-40FB-4EA6-B504-E18388491869&ID=9350759&M=F>.

“sufficient integrity” for eligibility to be listed in the National Register of historic resources.¹⁶² An image of the building to be demolished, taken by that firm during the visit, can be seen below.¹⁶³

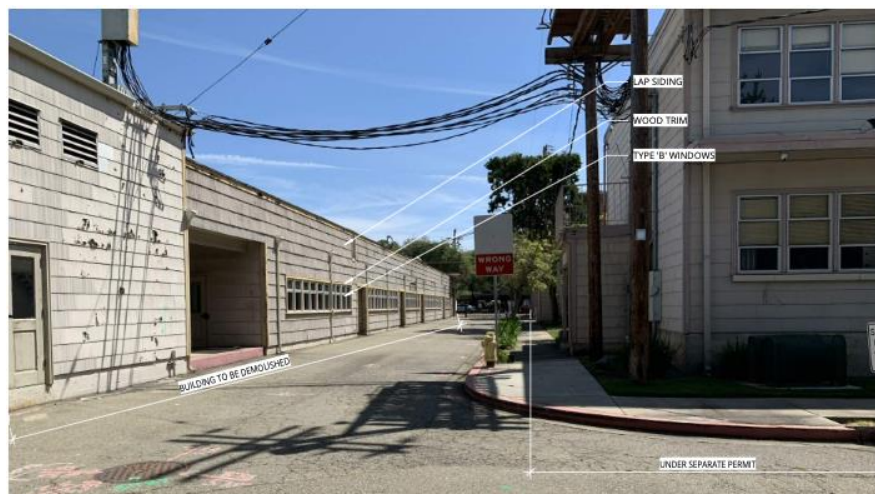


Figure 4: “Historic” Building to Be Demolished for the McKay Wellness Center in Alameda, CA

In San Ramon, an appellant’s attorney told the council that a permit application falsely claimed ownership of a disputed parking lot; staff responded, and the record confirmed that the application made no such claim.¹⁶⁴ In Palo Alto, a regular critic charged that the planning report “quotes only property owners, brokers ... landlords”; the report *quotes* no one and documents outreach to businesses, retailers, childcare providers, and the public.¹⁶⁵ In Encinitas, a commenter accused officials of “intentionally le[aving] out” a project’s wildfire-evacuation danger, though the fire department had already conducted its own evacuation analysis and openly disputed the residents’ study.¹⁶⁶

The procedural register has similar challenges. In a Davis hearing on an urgency ordinance requiring design review for “large” homes, one commenter asked whether there had been a “breakdown of communications” between the council and the planning department, given that planning “okayed” a large home addition and “didn’t bring it to council.” No rule required it to, though; the addition went through a ministerial permit process whose requirements the project fully

¹⁶² Stacy Kozakavich, Page & Turnbull, Memorandum re: 620 Central Avenue/1245 McKay Avenue, Alameda (APN 74-1305-26-2), at 2, 8-10, 16 (Apr. 29, 2021), <https://www.alamedaca.gov/files/assets/public/v/1/major-planning-projects/mckay-2021/mckay-alameda-federal-center-april-2021-page-and-turnbull-memo.pdf>.

¹⁶³ *Id.* at 21.

¹⁶⁴ City of San Ramon, City Council Meeting (Aug. 25, 2020); City of San Ramon, Staff Report, at 129-35, https://sanramonca.igq2.com/Citizens/Detail_Meeting.aspx?ID=2954.

¹⁶⁵ Compare City of Palo Alto, City Council Meeting (Dec. 14, 2020), with City of Palo Alto, City Manager Report No. 11702, at 18, <https://www.paloalto.gov/files/assets/public/v/1/agendas-minutes-reports/reports/city-manager-reports-cmrs/year-archive/2020-2/id-11702.pdf>.

¹⁶⁶ See City of Encinitas, City Council Meeting (June 8, 2022); Bill Slane, *Encinitas Disputes Claims in Independent Fire Analysis of Goodson Project*, THE COAST NEWS GROUP (Nov. 10, 2021), <https://thecoastnews.com/encinitas-disputes-claims-in-independent-fire-analysis-of-goodson-project/>.

satisfied.¹⁶⁷ In Fontana, the allegation’s failure was starker. A property owner appealed a warehouse by claiming that truck traffic would trespass on his private access road and neighboring parcels “must obtain land usage agreements from me”—a premise a California appellate court had already rejected in litigation to which he was a party, holding that the road was public, a decision staff had cited.¹⁶⁸

Most allegations, however, land between the poles as directionally true, but stated as something stronger. In Clovis, an attorney suing the city flagged that its draft annual progress report omitted an outstanding court order requiring rezoning for over four thousand additional units, doubling the disclosed obligation.¹⁶⁹ The order was under appeal at the time, but was affirmed weeks later.¹⁷⁰ In San Jose, a resident objected that a data center presentation touted replacing 47 trees while omitting that the project would remove 156. Yet the figure appeared in the project record, the applicant obliquely acknowledged it, and a councilmember referenced the tree-mitigation payment.¹⁷¹ The objection is therefore better read as selective emphasis than factual concealment.

Fully corroborated misrepresentation claims are relatively rare and often nuanced. In a San Jose hotel appeal, the appellant read the exhibits against one another—the transportation plan promised guests a free shuttle, but the operations plan’s staffing list contained no shuttle driver.¹⁷² In Oakland, a commenter charged that staff ignored a direct question about the racial composition of a project’s union workforce; the transcript shows the question asked, deemed “valid,” and left unanswered at

¹⁶⁷ See City of Davis, City Council Meeting (Feb. 5, 2019) (compare statement of resident Carol Holm with that of planner Ashley Feeney); see also David M. Greenwald, *Planning Commission to Consider Permanent Ordinance on Design Review for Larger Homes*, DAVIS VANGUARD (Apr. 6, 2019), <https://davisvanguard.org/2019/04/planning-commission-to-consider-permanent-ordinance-on-design-review-for-larger-homes/>.

¹⁶⁸ See City of Fontana, City Council Meeting (Mar. 23, 2021); S. Cal. Edison Co. v. Constant, 2020 WL 3261460, at *15 (Cal. Ct. App. June 15, 2020) (saying the avenue was “clearly a public road”).

¹⁶⁹ See City of Clovis, City Council Meeting (Mar. 20, 2023); Danielle Bergstrom, *Appeal Judge to Clovis: Make Way for More Affordable Housing*, KVPR (Apr. 7, 2023), <https://www.kvpr.org/local-news/2023-04-07/appeal-judge-to-clovis-make-way-for-more-affordable-housing> (describing a May 2021 order to plan for an additional 4,000 or so units).

¹⁷⁰ *Martinez v. Clovis*, 90 Cal. App. 5th 193 (Apr. 7, 2023).

¹⁷¹ News coverage confirms the project would remove 156 trees and replant only 47. See Joseph Geha, *Proposed Data Center Spurs North San Jose Growth*, SAN JOSE SPOTLIGHT (May 4, 2023), <https://sanjosespotlight.com/proposed-data-center-development-stack-infrastructure-spurs-north-san-jose-growth/> (quoting Planning Comm’r Chuck Cantrell: “It seems to me a bit perverse to remove trees and not replace them.”)

¹⁷² See Exhibit B—Appeal of Special Use Permit (File No. SP20-016) 18, 21–22 (Mar. 27, 2022), <https://sanjose.legistar.com/View.ashx?GUID=006A6595-A46F-4758-B1F5-A198743B8FB5&ID=11132712&M=F> (arguing that the developer’s operations plan omitted a shuttle driver despite the TDM plan’s shuttle commitment); compare Hexagon Transp. Consultants, Inc., 1212 S. Winchester Boulevard Hotel Development: Draft Transportation Demand Management (TDM) Plan 13 (Jan. 27, 2021), <https://sanjose.legistar.com/View.ashx?M=F&ID=11133583&GUID=C25A1DFB-B2D5-4141-A44A-6E966A20F803> (stating that the project “would offer free shuttles to guests”), with Exhibit I—Operations Plan, 1212–1224 S. Winchester Blvd Hotel 3 (filed Sept. 27, 2021), <https://sanjose.legistar.com/View.ashx?M=F&ID=11133579&GUID=939CB4E5-7F23-420F-BCBF-CE9FB3F8A984> (listing employee staff positions without a shuttle-driver position).

the later meeting.¹⁷³ Even corroborated claims may add little if they are already known. In Cupertino, a commenter noted that a consultant's graph rested on only seven respondents, but planning commissioners had already raised the same problem earlier.¹⁷⁴

The strongest vindications of accountability-styled allegations are procedural and often come from litigants and repeat players preserving objections for the record. In Richmond, commenters alleged that the city had negotiated in closed session in violation of the Brown Act; months later, a federal judge thought there was enough merit in this claim to deny a motion to dismiss.¹⁷⁵ In Los Angeles, a union representative traced a hotel's path through the zoning process (the applicant first sought a zone that could not legally accommodate the project's 110 rooms, the correction enlarged the entitlement, and the council was poised to skip the review required for that change).¹⁷⁶ These patterns speak to the marginal value of oral comment within the broader accountability apparatus of records requests, audits, litigation, and state enforcement. In these comments, public comment is effectively operating as a courthouse antechamber.

The register a commenter adopts tracks the legal character of the proceedings. Where the city is making rules (general plans, zoning ordinances, housing-element updates), accountability sounds more systemic, with residents more likely to question whether the public was meaningfully consulted, to invoke disparate impacts on disadvantaged groups, and to contest which body is entitled to decide. Where the city is applying rules in an adjudicative setting, accountability comments sound more legalistic, with residents more likely to allege that the evidentiary record is dishonest and that a particular procedural requirement was violated.

Yet every register on display here presupposes something to inspect, like a staff report to contradict, a hearing record to audit, or a procedural step to catch being skipped. A substantial share of council business is conducted out of view. As Part I.A explains, the Brown Act allows closed sessions only for a limited set of reasons such as property negotiations, pending litigation, and personnel matters. The share of council meetings that included a closed session has remained relatively flat at around 51% between 2015 and 2025.¹⁷⁷ Comment-based accountability can extend only as far as the record does, and for half of council meetings, part of the record does not exist.

¹⁷³ See City of Oakland, City Council Meeting, Final Reading of the 12th Street Remainder Second DDA Amendment (Nov. 14, 2019); City of Oakland, City Council Meeting, First Reading of the 12th Street Remainder DDA Amendment (Nov. 5, 2019).

¹⁷⁴ See City of Cupertino, City Council Meeting, Agenda Item No. 22-10325 (Feb. 1, 2022) (recounting what she had observed at the planning commission meeting the previous week).

¹⁷⁵ See City of Richmond, City Council Meeting (Apr. 17, 2018); Barbara Harvey, *Lawsuit Challenging Point Molate Settlement to Proceed*, RICHMOND CONFIDENTIAL (Sept. 14, 2018), <https://richmondconfidential.org/2018/09/14/lawsuit-challenging-point-molate-settlement-to-proceed/>.

¹⁷⁶ See City of Los Angeles, City Council Meeting (Dec. 11, 2018); Communication from Council District 10 to L.A. City Clerk re: Council File No. 17-0558 (July 20, 2017) https://cityclerk.lacity.org/online/docs/2017/17-0558_misc_07-20-2017.pdf (proposing enlargement); Motion, L.A. City Council File No. 17-0558 (Dec. 7, 2018) https://cityclerk.lacity.org/online/docs/2017/17-0558_mot_12-07-2018.pdf (council about to rescind the referral and adopt directly).

¹⁷⁷ A meeting is coded as having a closed session if its agenda or minutes, or its structured agenda line-items, cite a Brown Act closed-session authorization (Cal. Gov't Code §§ 54956.7-.95, 54957, or 54957.6) or a standard closed-session item (e.g., conference with legal counsel re: litigation, with a labor negotiator, or over real property, or a public-employee personnel matter). The rate is computed by deterministic text-

E. Participation as Procedural Cost

One of the predominant concerns of the prevailing critique is that participation lets organized residents block new construction, especially sorely needed new housing. Participation of course imposes first-order mechanical costs—for example, city council meetings in my sample have lengthened from about 186 minutes in 2015 to 205 in 2023 and the share running past six hours has risen from 6% to over 10%. But the abundance critique is predominantly concerned with the effects of participatory procedure on outcomes outside the council room, especially in housing. In this section, I first illustrate the scale of the issue with new facts about the housing pipeline in California. I then present evidence on the mechanisms through which participation may add costs to new development through outright vetoes, delay, and expensive conditions.

1. *Where Housing Is Lost in the Pipeline*

California is known for its sprawling developments of single-family homes, and this is captured in its existing housing stock, two-thirds of which is single-family.¹⁷⁸ Yet the majority of *proposed* new units in recent years are multifamily. Between 2018 and 2024, 59% of units proposed to local governments sat in projects of five or more units, against 23% in single-family homes and 10% in accessory dwelling units.¹⁷⁹ Multifamily projects also make up the plurality of units receiving building permits over the past seven years.¹⁸⁰ Multifamily is mathematically necessary to address housing supply issues, and it is the format that triggers discretionary review and therefore participation across California.¹⁸¹

The issue is not that there is not enough housing being *proposed* in California. From 2018 to 2020, developers proposed roughly 6,400 multifamily housing projects for a total of over 500,000 proposed units; this alone would make a meaningful dent in any estimate of the state’s housing shortage, which ranges from around 800,000 to 3.5 million units.¹⁸² But by 2025, only about 70

matching over the roughly 20,000 city-council meetings in 2015–2025 for which an agenda or minutes document could be retrieved (available for 67 of 115 cities). Because the document universe is enumerated directly from each city’s agenda portal rather than posted recordings, it is not a strict subset of the transcript corpus. These towns’ portals list meetings for which no video was ever posted (including closed-session-only special meetings), and only about 11,000 of the roughly 20,000 document-covered meetings correspond to a transcribed sample meeting.

¹⁷⁸ See U.S. Census Bureau, American Community Survey, 2020–2024 ACS 5-Year Estimates, Table B25024: Units in Structure (counting “1, detached” and “1, attached” as single-family units). For the postwar suburban archetype, see GARY J. MILLER, *CITIES BY CONTRACT: THE POLITICS OF MUNICIPAL INCORPORATION* 86–87 (1981).

¹⁷⁹ Olivia H. Martin, *Who Takes the Fast Lane? Multifamily Permit Streamlining in California* (Aug. 2026) (unpublished manuscript).

¹⁸⁰ *Id.*

¹⁸¹ See Moira O’Neill, Giulia Gualco-Nelson & Eric Biber, *Developing Policy from the Ground Up: Examining Entitlement in the Bay Area to Inform California’s Housing Policy Debates*, 25 HASTINGS ENV’T L.J. 1, 49–50 (2019) (finding that all five examined jurisdictions required discretionary review for residential developments of five or more units, even when zoning-compliant, and that San Francisco imposed discretionary review on all proposed projects).

¹⁸² See UP FOR GROWTH, *3.85 Million Missing Homes in the U.S.* (Oct. 29, 2024), https://upforgrowth.org/news_insights/3-5-million-missing-homes-in-the-u-s/ (estimating California’s housing underproduction at 840,000 homes); Lola Woetzel, Jan Mischke, Shannon Peloquin & Daniel Weisfield, *A Tool Kit to Close California’s Housing Gap: 3.5 Million Homes by 2025*, MCKINSEY GLOBAL

percent of those projects had received a city approval, and only about 30 percent had received a building permit; the rest had not yet received a building permit.¹⁸³

2. *Outright Denial Is Rare*

The simplest account of the lost projects is that cities deny them, and the denial rhetoric is commonly used. However, outright denials seem to be extremely rare, both in city council meetings and in planning commission meetings. Only three to five percent of city council votes on land-use issues result in denial¹⁸⁴ and the same is true for only one percent of votes in San Francisco Planning Commission meetings. This is also corroborated by the state-mandated housing pipeline data from cities, which report denials for less than one percent of all proposed projects. This reorients the inquiry from the literal formal veto to the events that surround it.

3. *Participation Predicts Delay*

A second mechanism for participation to impose real costs is through delay. A recent RAND study of 50 completed market-rate projects found that California apartments take, on average, 28 months of pre-development time compared to 21 in Colorado and 13 in Texas.¹⁸⁵ California's own permitting data tell a similar story. Among 3,600 apartment projects with a building permit, the average number of days from application to building permit was 509 days or about 17 months; however, for projects with 100 units or more, that number quickly approaches 800 days.¹⁸⁶ Despite California's wave of permit-streamlining reforms, a large housing project that applied in 2023 was only modestly more likely to receive a building permit within two years than one that applied in 2018—roughly one-quarter in either cohort. The only clear improvement is at the fast end. And as one would expect, delays are the worst in rich, coastal enclaves. San Francisco and West Hollywood lead in delay, with averages of 936 and 825 days, respectively.¹⁸⁷

INST. (Oct. 2016), <https://www.mckinsey.com/featured-insights/urbanization/closing-californias-housing-gap> (estimating that California needed 3.5 million additional homes by 2025); LEGISLATIVE ANALYST'S OFFICE, CALIFORNIA'S HIGH HOUSING COSTS: CAUSES AND CONSEQUENCES (Mar. 2015), <https://lao.ca.gov/reports/2015/finance/housing-costs/housing-costs.aspx> (need to build up to 100,000 additional units annually).

¹⁸³ Martin, *supra* note 179. For scale, the U.S. Bureau of Labor Statistics reports that, among private-sector establishments born in March 2013, 50.6% survived five years and 34.7% survived ten years; among construction establishments, 53.9% survived five years and 40.1% survived ten years. See Bureau of Labor Statistics, U.S. Department of Labor, *34.7 Percent of Business Establishments Born in 2013 Were Still Operating in 2023* (Jan. 12, 2024), <https://www.bls.gov/opub/ted/2024/34-7-percent-of-business-establishments-born-in-2013-were-still-operating-in-2023.htm>.

¹⁸⁴ See Appendix § 5 for vote polarity methodology and validation. Beyond selection effects, the low denial rate might also reflect the fact that California law has increasingly made formal denial of housing projects legally dangerous, especially after *Cal. Renters v. San Mateo* clarified the strength of the Housing Accountability Act. 68 Cal. App. 5th 820 (Sept. 10, 2021).

¹⁸⁵ JASON M. WARD & LUKE SCHLAKE, THE HIGH COST OF PRODUCING MULTIFAMILY HOUSING IN CALIFORNIA: EVIDENCE AND POLICY RECOMMENDATIONS, RAND CORP. RR-A3743-1, at 33 (Apr. 2025), https://www.rand.org/pubs/research_reports/RR-A3743-1.html.

¹⁸⁶ Martin, *supra* note 179.

¹⁸⁷ San Francisco's leadership remains even once adjusting for the mix of projects it has permitted—which are often on the larger end. *Id.*

San Francisco offers a compelling and feasible place to observe the relationship between participation and delay because its planning commission's records are unusually complete in documenting a project's full attributes, procedural history, and clerk-coded participant-level opposition to or support for a project.¹⁸⁸ I restrict the dataset to 581 proposals for projects of five or more units first heard between 1999 and 2024 and ask whether opposition at a project's first hearing predicts its subsequent path. It does, even after a demanding battery of controls including project size, a mixed-use indicator, neighborhood and hearing-year fixed effects, repeat player (developer and law-firm) indicators, project-history indicators such as a prior demolition, and census-tract socioeconomic controls.¹⁸⁹

Moving from no opposed speakers at the first hearing to three—roughly the threshold of an organized turnout—predicts about 1.3 additional continued hearings and nearly triples the span between a project's first and last commission event, turning the two months a typical proposal spends before the Commission into six. A doubling of supportive speakers predicts the mirror image at a comparable magnitude. Against a sample mean of 1.6 continuances and a 185-day commission window, these magnitudes are meaningful. They should not, however, be read as causal. Opposition is not randomly assigned; controversial projects draw opponents and unobserved features of a project beyond what I control may drive both turnout and delay. But even on that reading, the hearing is the venue where controversy converts into continuances, which is precisely the cost mechanism at issue.

4. *Participation and the Content of Approval Conditions*

A third mechanism, perhaps the least studied, is for participation to impose costs through negotiated conditions on a project. Some are legislative and generally applicable, like impact fees. Yet many are discretionary and negotiated, like changes to height, density, materials, parking, operating hours, affordability covenants, community-benefit funds, tenant protections, and public art. Many of these conditions may improve projects in ways that matter to residents, and they may force developers to internalize real local costs. But they also exemplify why understanding what is happening in processes beyond legislatively enacted zoning codes and impact fees is essential to understanding the costs on new development.

To measure conditioning, I follow projects across their repeated appearances before a council, linking agenda items that share a project name, address, parcel reference, or description within a city.¹⁹⁰ The land-use subset contains roughly 19,000 such histories, of which roughly 7,000 are for real development projects rather than citywide plans, fee schedules or policy resolutions. Conditioning is widespread; 49 percent of these histories carry at least one verified condition even though most come before the council only once, and among the multi-meeting histories that anchor the analysis below, 83 percent do. Roughly 70 percent of conditions appear to be negotiated under

¹⁸⁸ I expand on Sahn (2025) to assemble a project-level dataset of San Francisco Planning Commission matters from the Commission's published hearing records, linking each project across its repeated appearances and to staff reports providing rich details on project attributes. See Sahn, *supra* note 128; Appendix § 6 for details.

¹⁸⁹ Project-history indicators include whether there is evidence of residential demolition, tenant displacement, historic status, design-review concerns, and requested variances.

¹⁹⁰ See Appendix § 7 for full linkage and condition extraction methodology.

discretion (e.g., toning down exterior colors or adding a left-turn lane), whereas the remainder appear to be application of mandatory conditions like those imposed by citywide ordinances (e.g., minimum street setbacks, park in-lieu and impact fees, construction-hours limits).

Conditions sort into three rough types. The first and most common is infrastructure and access tied to the project's physical footprint: access and circulation conditions (17%, the single most prevalent category) and traffic mitigation (10%). These specify sidewalk and right-of-way dedications, bike lanes, emergency access, traffic signals, and fair-share contributions, and they map tightly onto the development itself, since new construction adds the trips and access demands the condition often offsets. Costs of these conditions are rarely explicitly discussed, but they can still be surprisingly large. For example, a 56-unit development of townhomes on a former industrial parcel on the Bay shoreline was conditioned to build a \$3 million, fourteen-foot-wide public Bay Trail extension along the waterfront.¹⁹¹

The second type is control over a project's form and use, usually carrying no explicit price: design and aesthetic conditions (17%), use restrictions (11%), landscaping (11%) and noise (6%). Design and landscaping conditions specify single- or second-story stepping, fencing material, ground-floor treatment, and drought-tolerant planting. For example, a Simi Valley residential care facility was required to plant nine-foot *Arbutus* trees for "instant screening" of neighbors.¹⁹² Noise conditions require sound walls and windows, roofs, and doors designed to reduce sound. In one extreme example, the Berkeley city council required a backyard hot tub to sit on a sound-reducing mat, with the pump "mounted and enclosed so that sound is not audible on adjacent properties."¹⁹³ Use restrictions cabin permitted activity, such as limits on alcohol sales in mixed-use development.

The third type is monetized and exaction-like: affordability covenants (15%) and community-benefit packages (11%), where the condition is more likely to include a specific dollar or dedicated unit count. For example, approval of a 303-unit development in Mountain View was conditioned approval on a \$4 million community benefit package, much of which would go to improving the city's sewer and water infrastructure, in addition to a \$1.5 million voluntary school contribution beyond the state-mandated school impact fee.¹⁹⁴ Community benefit packages are most common for large mixed-use projects. Figures climb into the tens of millions for the largest projects. For

¹⁹¹ See Sierra Lopez, *Bayshore Condo Plan Approved in Redwood City*, SAN MATEO DAILY J. (June 28, 2023), https://www.smdailyjournal.com/news/local/bayshore-condo-plan-approved-in-redwood-city/article_ba6b6a20-1559-11ee-b0a8-570eb7e68d25.html; Regis Homes Bay Area, *New Housing Proposal: 505 E. Bayshore Townhomes*, at 10 (May 16, 2024), <https://www.bcdc.ca.gov/wp-content/uploads/sites/354/2024/01/2024-05-16-505EBayshore-v2.pdf> (valuing the easement at "\$3M+"). This condition was a descendant of state law because the San Francisco Bay Conservation and Development Commission has jurisdiction over a 100-foot shoreline band. See Cal. Gov't Code § 66610.

¹⁹² City of Simi Valley, City Council Meeting (Aug. 23, 2021).

¹⁹³ CITY OF BERKELEY, STAFF REPORT: 2924 RUSSELL STREET ADMINISTRATIVE USE PERMIT 4, 17 (2024) <https://berkeleyca.gov/sites/default/files/documents/2024-02-27%20Item%2015%20ZAB%20Appeal%202924%20Russell%20Street.pdf>. This was a non-discretionary condition. See Berkeley, Cal. Mun. Code § 23.304.070(D)(2) (requiring jacuzzi pumps to be mounted and enclosed for sound purposes).

¹⁹⁴ City of Mountain View, City Council Meeting (June 30, 2020); City of Mountain View, Env't Planning Comm'n, Staff report: 1001 North Shoreline Boulevard Residential Development 18-20 (May 6, 2020), <https://mountainview.legistar.com/View.ashx?M=F&ID=8299170&GUID=D1C18CB4-DD7A-46A8-9A6C-4C43167203F4>.

example, a South San Francisco mixed-use development carried a \$47 million community-benefits package.¹⁹⁵

Conditions can also reshape core project characteristics like size and height. Across the 1,659 projects with documented changes in core features, the most consistent movement is downward on building height. 69 percent of recorded height changes are reductions, with a median cut near 17 percent, a typical project falling from 42 to 35 feet.¹⁹⁶ Unit counts move in both directions, with decreases accounting for 43 percent of recorded unit-count changes; reductions concentrate in the larger projects, while increases often track density-bonus negotiations in the transcript. Projects frequently have affordable units added to them throughout the approval process. As with named conditions, this captures only movements stated on the record, so these counts understate how often a project is resized between application and approval.

Unlike delay, the presence of conditions does not appear rationalizable by turnout. Roughly eight in ten projects end up with some form of condition visible in the transcript record, and neither opposition nor support at a project's first hearing predicts the incidence or count of conditions under a battery of controls similar to those used in the delay exercise above.¹⁹⁷ Yet participation does strongly track *which* conditions attach.¹⁹⁸ When each public comment at a project's first hearing is categorized into the same sixteen categories used for conditions—traffic, parking, design, noise, affordability, and so on—the categories the public raises reasonably predict what conditions appear. A category raised at the first hearing is about 9 percentage points more likely to appear among the project's conditions, against a base rate of 16 percent, with project and category fixed effects absorbing the fact that contested projects attract both more comment and more conditions.¹⁹⁹

Overall, project conditions are prevalent and achieve a wide variety of purposes, some of them tightly tied to project-impact mitigation, and some more loosely tied to off-site or third-party transfers. The exposure of this type of conditioning under current takings doctrine is explored in further detail in Part III.

III. Designing Local Participation

The empirical reality of public participation offers two broad lessons. One is that local participation in its current form has struggled to keep up with many of its purported benefits. Participation is sparse and unrepresentative, information transmission appears thin, comments alleging accountability failures seem roughly as likely to raise valid points as invalid ones, and even the procedural legitimacy function of participation is on uncertain footing.²⁰⁰ The second is that evidence suggests a real relationship between heavy participation and project delays, and identifies conditions of approval as a core mechanism translating participatory concerns into

¹⁹⁵ City of South San Francisco, City Council Meeting (Nov. 13, 2019) (approving an 800-unit mixed-use project at 1051 Mission Rd).

¹⁹⁶ See Appendix § 7.2 for methodology.

¹⁹⁷ Full regression table in Appendix § 7.3.

¹⁹⁸ *Id.*

¹⁹⁹ *Id.*

²⁰⁰ See Love and Sahn, *supra* note 98; Sahn & Simko, *supra* note 99.

increased project complexity, all amidst a pipeline in which housing is sorely needed and proposed housing projects are substantially less likely to succeed than other new businesses.

The question this Part takes up is how to redesign participation so that it better achieves its stated purposes and produces fewer of its deleterious effects. Current law treats public input as a general-purpose procedural good, attaching it to legislative planning, discretionary permitting, environmental review, and appeals alike. This Part proposes a reallocation.²⁰¹ First, as I describe in Part III.A, cities should invest in making participation in select upstream, broadly applicable, legislative settings more representative. I argue that broad public participation is most valuable for decisions in which the government is choosing among competing public values and real tradeoffs are possible. Its claim is weaker in project-specific adjudications, where deliberation is narrower, discretion is harder to cabin, and opposition can reopen tradeoffs that should have been resolved upstream. Second, any project that complies with objective zoning rules should be approved ministerially, or without discretion. Specifically, site-specific participation would be strictly limited to narrow, post-entitlement concerns regarding safety and compliance where participation might offer local expertise. Part III.B analyzes various approaches to this cost containment. It considers how takings doctrine might discipline the conversion of public opposition into project conditions; how to limit the ability of participation to become litigation leverage; and how state preemption and ministerial regimes might reduce the discretion through which local opposition affects project outcomes directly. The goal is a system in which residents have a meaningful voice over the rules shaping local growth, while individual projects that satisfy those rules are not forced to relitigate the growth question parcel by parcel.²⁰²

A. Improving Participation's Benefits

The most straightforward responses to participation's shortcomings in the policy debate have largely centered around arguments to increase or decrease opportunities for participation.²⁰³ For example, many advocates believe that more participation will help produce more representative participation, and states like California have invested in broadening these opportunities.²⁰⁴ However, when pandemic-era Zoom reduced attendance costs, participation broadened only briefly and then reverted, with the under-40 share of commenters jumping from 22 to 30 percent before

²⁰¹ The reallocation proposed here is in the spirit of several recent proposals. In the infrastructure permitting context, see Zachary Liscow, *Getting Infrastructure Built: The Law and Economics of Permitting*, 39 J. ECON. PERSP. 151 (2025) (proposing reform through increased executive authority to decide and capacity to plan while streamlining project-level approval). In the local land use context, see Lemar, *supra* note 16; Moira O'Neill, Christopher S. Elmendorf, Eric Biber & Paavo Monkkonen, *State Administrative Review of Local Constraints on Housing Development: Improving the California Model*, 63 ARIZ. L. REV. 609 (2021) (proposing how state review can make housing elements' commitments to constraint removal enforceable—a precondition for the reallocation proposed here).

²⁰² The concept of not relitigating the existence of rules in their enforcement should be a familiar one in federal administrative law. See, e.g., *Indep. Cmty. Bankers of Am. v. Bd. of Governors of Fed. Rsrv. Sys.*, 195 F.3d 28, 34 (D.C. Cir. 1999).

²⁰³ See generally BRUCE CAIN, *DEMOCRACY MORE OR LESS* (2014).

²⁰⁴ Lemar, *supra* note 16, at 1087, 1094, 1102; Johnnie Pina, *SB 707 Has Dramatically Overhauled California's Brown Act*, SONOMA VALLEY SUN (Nov. 27, 2025), <https://sonomasun.com/2025/11/27/sb-707-has-dramatically-overhauled-californias-brown-act/>.

returning to baseline by March 2021.²⁰⁵ Moreover, cities with more participation per capita are, if anything, less representative of their registered voters. The opposite instinct is subtraction. If the numerous participation mandates across state codes deliver little, perhaps we should halve them. The abundance literature gestures in this direction, and Lemar's titular diagnosis of "overparticipation" invites it.²⁰⁶ But subtraction ignores participation's supply of decision-relevant information and its role as an expressive outlet.²⁰⁷ The abundance critique sometimes tends to treat process as an undifferentiated mass without asking whether participation's value varies by decision type. Its target is typically procedure in gross, not procedure at the wrong stage.

Instead of focusing on whether there should be more or less participation, my proposal centers on the how and when of participation. Local governments should concentrate broad participation and the requisite outreach investments catalogued below on select decisions of general application like the general plan or, as is required in some form in a number of states, the housing element of their general plan.²⁰⁸ The periodic revisions of the locality's planning for how it will allocate space to meet the region's housing needs would become the city's main participatory events.

In terms of *how*, there is a rich literature proposing an array of mechanisms more deliberate than comment-at-a-microphone, which faces a selection problem due to high perceived costs and low (or narrowly distributed) benefits. One alternative is to convene intentionally balanced advisory boards or committees to provide input and oversight on specific issues; this has become particularly common in the sphere of police accountability in which "citizen police advisory boards" have proliferated.²⁰⁹ Another proposal from the deliberative democracy tradition is deliberation among "mini-publics," or convenings of "randomly selected groups of citizens to engage in a facilitated deliberation, typically culminating in a recommendation to the decisionmaker."²¹⁰ Yet another proposal is for local governments to integrate more targeted surveys of the population to obtain

²⁰⁵ See Martin & Venugopal, *supra* note 129 at 29.

²⁰⁶ KLEIN & THOMPSON, *supra* note 18; Lemar, *supra* note 16; Feinstein & Walters, *supra* note 18 at 4, 54 (describing the Trump administration's attempts to dismantle participatory mechanisms at the federal level).

²⁰⁷ In-person participation may continue to have an increased importance and value as concerns grow about bots and "highly realistic AI-controlled personas" dominating online participatory spheres. See, e.g., Mekela Panditharatne & Daniel I. Weiner, *Artificial Intelligence, Participatory Democracy, and Responsive Government*, BRENNAN CTR. FOR J. (Nov. 3, 2023), <https://www.brennancenter.org/our-work/research-reports/artificial-intelligence-participatory-democracy-and-responsive-government>.

²⁰⁸ See, e.g., Cal. Gov't Code §§ 65302, 65584 (mandatory housing element that must accommodate the city's regionally allocated share of housing need); Or. Rev. Stat. §§ 197A.100-.130, .270-.280 (housing capacity determinations and mandatory "housing production strategies" keyed to state-assigned production targets); Wash. Rev. Code § 36.70A.070 (housing element); N.J. Stat. Ann. §§ 52:27D-304.1 to -304.3, -310; Fla. Stat. § 163.3177; Wis. Stat. § 66.1001. The states vary as to whether the element must accommodate an externally allocated quantum of housing backed by state review or merely impose a planning obligation without a binding target.

²⁰⁹ See, e.g., JOSEPH DE ANGELIS, RICHARD ROSENTHAL & BRIAN BUCHNER, CIVILIAN OVERSIGHT OF LAW ENFORCEMENT: ASSESSING THE EVIDENCE 13 (2016), <https://www2.burlingtonvt.gov/Archives/bd/BUYR3W6A0665/Exhibit%20D%20-%20Civilian%20Oversight%20-%20Assessing%20the%20Evidence.pdf>. Note, however, that such advisory committees can come at significant procedural costs.

²¹⁰ Feinstein & Walters, *supra* note 18, at 13; David M. Farrell & Peter Stone, *Sortition and Mini-Publics: A Different Kind of Representation*, in THE OXFORD HANDBOOK OF POLITICAL REPRESENTATION IN LIBERAL DEMOCRACIES 228 (Robert Rohrschneider & Jacques Thomassen eds., 2020).

more representative estimates of resident preferences.²¹¹ Each of these mechanisms has its vulnerabilities; for example, boards get captured, mini-publics are costly to convene, and surveys elicit thin, unconsidered preferences. But representativeness, theoretically, is purchasable with sufficient procedural and financial cost.

Yet nearly any of these mechanisms would arrive as an addition, and indeed, the reliable tendency of administrative law is accretion.²¹² A reform that improves participation's yield without merely increasing its cost must take a position on *when* participation belongs.

In the current legal scheme, participation is seemingly in everything, everywhere, all at once.²¹³ But it was not always this way. The Standard State Zoning Enabling Act—the federal model statute that nearly every state adopted in some form, and that remains the structural backbone of local zoning procedure—encoded a sharp distinction between two kinds of land use decisions.²¹⁴ *Legislative* decisions, covering adoption and amendment of zoning ordinances, demanded broad participation by design.²¹⁵ *Adjudicative* decisions, such as decisions on variances, conditional use permits, and special exceptions, offered narrow participation, allowing only the aggrieved property owner to present evidence.²¹⁶

A century of practice has blurred the Act's clean binary. Between the citywide ordinance and the single-parcel variance sits a large middle category of site-specific rezonings, project-driven general plan and specific plan amendments, and development agreements. These are legislative instruments aimed at an identified parcel and applicant. Courts have struggled to define their place. Oregon's *Fasano* line treats site-specific rezonings as quasi-judicial because their function is particular; California's *Arnel* rule labels them legislative because their form is an ordinance; and Florida's courts concede that the local zoning authority “wears many functional hats.”²¹⁷ Federal administrative law has fared little better with its own quasi-labels.²¹⁸ I employ a functionalist approach and refer to a decision as legislative when it adopts prospective rules of general application, and adjudicative when it applies rules to an identified site or applicant regardless of

²¹¹ See, e.g., Douglas J. Watson, Robert J. Juster & Gerald W. Johnson, *Institutionalized Use of Citizen Surveys in the Budgetary and Policy-Making Processes: A Small City Case Study*, 51 PUB. ADMIN. R. 232 (1991); but cf. Janet M. Kelly, *Citizen Satisfaction and Administrative Performance Measures: Is There Really a Link?*, 38 URBAN AFF'S R. 855 (2003). Palo Alto, for example, contracts with PolCo for its community survey, and its survey population appears more representative than the council population. See Palo Alto Community Survey, City of Palo Alto, <https://www.paloalto.gov/Departments/City-Manager/Community-Engagement/Palo-Alto-Community-Survey>; author's calculations based on Palo Alto Community Survey respondent demographics and the author's council-participant dataset.

²¹² Bagley, *supra* note 18.

²¹³ Cf. Everything Everywhere All at Once (A24 2022).

²¹⁴ See Standard State Zoning Enabling Act, *supra* note 16, at iii & n.1, 1, 3.

²¹⁵ *Id.* at §§ 4–6, at 7–9 & § 4 n.28, at 7.

²¹⁶ See *id.* § 7, at 9–11.

²¹⁷ *Fasano v. Bd. of Cnty. Comm'rs*, 507 P.2d 23 (Or. 1973); *Arnel Dev. Co. v. City of Costa Mesa*, 620 P.2d 565 (Cal. 1980); *Snyder v. Bd. of Cnty. Comm'rs*, 595 So. 2d 65, 71 (Fla. Dist. Ct. App. 1991).

²¹⁸ See *Trump v. Slaughter*, 609 U.S. __ (2026) (slip op., at 19-23) (rejecting *Humphrey's Executor's* reliance on “quasi-legislative” and “quasi-judicial” categories and overruling what remained of *Humphrey's*); Beau J. Baumann & Jed H. Shugerman, *Quasi-Judicial: A History and Tradition*, 127 Colum. L. Rev. (forthcoming, 2026).

form.²¹⁹ My proposal aims to bring the equilibrium back to the Standard Act’s original vision by emphasizing participation upstream in more broadly applicable legislative settings and deemphasizing participation downstream in project-specific adjudications.

Three additional considerations support the reallocation. First, feasibility. Representative outreach is expensive, and guaranteeing every variance a pluralistic deliberation is a Sisyphean task. Concentrating the investment on the episodic legislative moments that set the rules is a task a city can actually complete, with the boards, panels, and surveys catalogued above. Second, fit. Legislative decisions often turn on questions of value, on which deliberation among diverse resident perspectives is the primary means of resolving such questions. Project-specific proceedings turn instead on facts about a parcel and its surroundings—facts some neighbors genuinely hold and staff do not, but which are narrow, verifiable, and as I argue below, deliverable through channels far short of a discretionary hearing. Third, the balance of voice. As detailed in Part II, national surveys provide overwhelming evidence that most Americans want more housing.²²⁰ And yet, in most council meetings, attendees’ attitudes tilt against the development outcome. Discussions about the city’s housing element—its broader plan for building housing—are the one development setting in the corpus where ordinary commenters tilt in favor of building. Among non-applicant speakers, 37 percent supported and 25 percent opposed, while across all other land use items the balance ran 41 percent opposed to 32 percent in favor. This suggests that discussions about citywide issues may be better at drawing more representative viewpoints than just project neighbors, though it may also simply reflect the fact that support in the abstract is cheaper than support for a particular building with more concrete costs.

Upstream, California has already built the legislative venue the reallocation needs. State law requires every city’s general plan to include a housing element that assesses housing needs, states the city’s quantified objectives in affirmatively furthering fair housing, and describes how it will achieve those objectives, including by identifying an inventory of sites that could accommodate new housing.²²¹ The law specifically calls for “a diligent effort . . . to achieve public participation by all economic segments of the community” during this inherently legislative, forward-looking process of planning out the city’s development for the next 5 to 8 years. Elmendorf and coauthors argue that a city council unable to approve any single project can instead use the housing element to commit to housing under cover of the state mandate, negotiating in the shadow of a pro-housing

²¹⁹ To clarify, this decision distinction should not be confused with the evidentiary one. See Kenneth Culp Davis, *An Approach to Problems of Evidence in the Administrative Process*, 55 Harv. L. Rev. 364 (1942) (distinguishing between legislative and adjudicative facts). Moreover, my proposal requires little to no doctrinal policing of the still delicate and difficult line between legislative and adjudicative decisions. The upstream half requires cities only to designate a short list of key legislative moments for concentrated investment. The downstream half requires no such delineation; a project proceeds ministerially if it satisfies objective standards, whatever the approving instrument would otherwise have been called. This does leave rezonings in somewhat of a grey area in which proposed projects, by definition, do not meet objective standards; however, I have confidence in the continued success of the long ongoing rezoning movement to further reduce the number of occasions in which this is a true bottleneck.

²²⁰ See *supra* note 147. Even if I were to only compare the most recent year of full data—2023—anti-development sentiment still outnumbers pro-development sentiment. Appendix § 3.1.

²²¹ Cal. Gov’t Code § 65583.

default and deflecting blame upward.²²² With increased enforcement and scrutiny, cities appear to be acting on promised rezonings as well.²²³

But what about the information that residents supply? The information in these meetings falls into three rough categories that reallocation should treat differently. The first consists of judgments residents are poorly positioned to make, like forecasts, aggregate traffic effects, crime impacts, and other system-level inferences that trained staff should feasibly be able to make and for which local intuition likely degrades accuracy. The second is sound but misaddressed. The earlier comment expressing concern about bicyclists riding on the sidewalk has raised a real infrastructure problem but one better handled through citywide bike-lane planning than through a project-specific veto. The third is project-specific information that would be costly to replace, like the knowledge of which corner tends to flood or the sightline that makes the left turn blind.

The design goal is to keep that last category while stripping away the leverage currently bundled with it. At the approval stage—which, under my proposal, would be a ministerial compliance review—noticed abutters and other affected parties may submit written evidence on the defined question of whether the project complies with the adopted objective standards. Issues about how a compliant project will operate should move to an expeditious implementation conference convened *after* entitlement, when the project’s existence is settled.²²⁴ This is the stage at which other safety-critical evaluations occur, including the building permit process. Participation at the approval stage converts every observation into a bargaining chip against the project’s success. But input after entitlement is information stripped of the strongest form of veto power.

Montana is actively running a version of the experiment I propose. In 2023, Montana passed legislation reallocating participation to land use planning sessions in cities, after which site-specific applications in substantial compliance with the resulting regulations receive streamlined administrative review.²²⁵ The bill’s principal drafter was blunt about the theory: “we do the planning and the public participation up front,” allowing permitting to “becom[e] a very administrative process.”²²⁶ The Act has already survived a claim that it violates the state’s

²²² Christopher S. Elmendorf et al., “*I Would, If Only I Could*”: *How California Cities Can Use State Law to Overcome Neighborhood Resistance to New Housing*, 57 WILLAMETTE L. REV. 221 (2022).

²²³ For example, San Francisco committed to rezone for roughly 36,282 units, which it appears to have completed prior to the state’s statutory deadline. Press Release, Office of the Mayor, City & County of San Francisco, Mayor Lurie Signs Historic Family Zoning Legislation (Dec. 12, 2025), <https://www.sf.gov/news-mayor-lurie-signs-historic-family-zoning-legislation-to-make-city-affordable-for-generations-of-san-franciscans>. Los Angeles similarly made good on its Housing Element commitment to rezone 252,415 units before the state’s deadline. Steven Sharp, *City Council Approves Housing Element Rezoning Program*, URBANIZE L.A. (Dec. 11, 2024), <https://la.urbanize.city/post/city-council-approves-housing-element-rezoning-program>.

²²⁴ “Expeditious” would ideally mean a specified window—for example, 30 days—within which the city may hold the conference, after which it forfeits the opportunity.

²²⁵ Mont. Code Ann. § 76-25-101 to -504 (codifying S.B. 382).

²²⁶ Eric Dietrich, *Land Planning Overhaul Would Prioritize Proactive Urban Planning*, MONT. FREE PRESS (Feb. 23, 2023), <https://montanafreepress.org/2023/02/23/montana-land-planning-overhaul-prioritize-proactive-urban-planning/>.

constitutional provision guaranteeing public participation in agency operations (a constitutional form of California's Brown Act).²²⁷

Note that this proposal to reweight the participatory onus toward the legislative mode and away from the adjudicative mode may appear, at first blush, to be a complete flip of the constitutional allocation of due process procedural rights. For over a century, the *Londoner* and *Bi-Metallic* duet of cases has instructed administrative law students that adjudications typically demand *more* procedural due process than rulemakings do.²²⁸ In *Londoner*, the Court held that the Denver city council—acting as an agency—erred by failing to provide a hearing for a small set of property owners affected by a property tax applied only to a small, new, and “arbitrarily created” district in the city—a quintessential adjudication.²²⁹ In contrast, in *Bi-Metallic*, the Court held that the state could raise the valuation of all taxable property—a quintessential, generally applicable, legislative move—in Denver without a hearing.²³⁰

But the need for and value of broad participation is not the same as that of due process procedural rights. Participation is theoretically intended to help policymakers balance pluralist perspectives, to integrate distributed expertise, to hold policymakers accountable, and to allow for an expressive outlet for citizens. This account is strongest when the government decides what generally applicable rules should be. Procedural due process, in contrast, guards individuals against erroneous deprivation of liberty and property.²³¹ Yet what exactly *are* the property interests of the disgruntled neighbors that make up much of land use participation? The common law gives neighbors thin protection against nearby development. Nuisance polices substantial and unreasonable interference, and courts generally reject even a right to light and air across the lot line.²³² Constitutional property reaches further than common law property, but that breadth runs through positive law, and no positive law confers on a neighbor an entitlement to the zoning status quo next door.²³³ What the hearing gives the neighbor, then, is power without a right. She can delay

²²⁷ See *Montanans Against Irresponsible Densification, LLC v. State*, 555 P.3d 759 (Mont. 2024). The Act was modified to allow the public to comment on a site-specific application, but only as to new or significantly increased impacts not previously identified when the plan and regulations were adopted.

²²⁸ But cf. *SEC v. Chenery Corp. (Chenery II)*, 332 U.S. 194, 202-03 (1947) (recognizing that agencies may develop policy through adjudication and that the choice between rulemaking and adjudication lies primarily in agency discretion).

²²⁹ 210 U.S. 373 (1908).

²³⁰ 239 U.S. 441 (1915).

²³¹ *Mathews*, 424 U.S. at 332-35.

²³² See *Fontainebleau Hotel Corp. v. Forty-Five Twenty-Five, Inc.*, 114 So. 2d 357, 359 (Fla. Dist. Ct. App. 1959) (“No American decision has [held that] . . . a landowner has a legal right to the free flow of light and air across the adjoining land of his neighbor.”); *Wolford v. Thomas*, 190 Cal. App. 3d 347, 356-59 (1987) (similar).

²³³ See *Roth*, 408 U.S. at 571-77 (1972) (requiring a “legitimate claim of entitlement” created by “existing rules or understandings that stem from an independent source such as state law”); *Gagliardi v. Vill. of Pawling*, 18 F.3d 188, 192-93 (2d Cir. 1994) (holding that adjacent homeowners had no constitutional property interest in enforcement of zoning laws or permits and variances granted to neighboring properties); *Avco Cmty. Developers, Inc. v. S. Coast Reg’l Comm’n*, 553 P.2d 546, 550-51, 554 (Cal. 1976) (no interest vested before a building permit issued); *Eubank v. City of Richmond*, 226 U.S. 137 (1912) (prohibiting standardless neighbor power to impose limits on their abutting properties). But cf. *Horn v. County of Ventura*, 596 P.2d 1134, 1138 (Cal. 1979) (holding that discretionary approvals require notice and hearing for neighbors whose property interests may be “significantly affected” through spillover effects on their own parcel). Commentators note that *Horn* makes streamlining challenging, though it only attaches

the project, press conditions on it, and build the record that supports a later lawsuit. Reallocating participation toward the legislative setting ends the arrangement, returning the adjudicative hearing to the party whose entitlement is actually at stake, and moving the public's voice to where the public's rules are made.

B. Taming Participation's Costs

This section evaluates three responses to participation's costs in ascending order of promise: constitutionalizing limits on participation-driven conditions through takings doctrine, curtailing the environmental review statutes that convert hearings into litigation records, and preempting project-level discretion altogether.

1. Takings Insulation

Part II brought to light the diversity of conditions that are imposed on new development projects. A number of these conditions are introduced in response to concerns raised by public commenters and stakeholders. A number of these conditions also sit uneasily with the Supreme Court's ever-expanding Takings Clause doctrine, and one natural response to the participation-driven costs catalogued above is to constitutionalize their limits. That is the path the Court itself has steadily extended over four decades.

The line of cases applying scrutiny to exactions of property as conditions for permits began humbly enough in *Nollan v. California Coastal Commission*.²³⁴ There, the Court found the Coastal Commission's imposition on a coastal permit of a condition requiring an easement for public beach access—under the concern that the building project would create a “psychological barrier” to beach access—to lack an “essential nexus” between “the condition and the original purpose of the building restriction” and therefore to constitute an unconstitutional taking.²³⁵ The Court then raised the scrutiny of this nexus requirement to require rough proportionality between conditions imposed and the impact of land use in *Dolan v. City of Tigard*.²³⁶ Two decades later, the doctrine took another leap in *Koontz*, where the Court expanded the doctrine to include monetary exactions when in lieu of a property exaction.²³⁷ And most recently, in *Sheetz*, the Court further expanded takings analysis to apply not just to individually adjudicated conditions, but also to broad legislatively imposed conditions like traffic impact fees set in a city's General Plan.²³⁸ Most strikingly, *Sheetz* was delivered unanimously.²³⁹ And now, there are calls to push the doctrine even further to

to adjudicatory, discretionary decisions. Therefore, ministerial regimes of the kind this Article proposes dissolve the *Horn* hearing just as they sever the CEQA hook. See Milene Minassians, *Saving the Permit Streamlining Act: The California Supreme Court Must Depart from Horn v. County of Ventura*, 30 HASTINGS ENV'T L.J. 105 (2024).

²³⁴ 483 U.S. 825 (1987).

²³⁵ *Id.* at 837-838.

²³⁶ 512 U.S. 374, 386, 391 (1994).

²³⁷ 570 U.S. 595, 612-15, 619 (2013); see also *id.* at 620-21, 630, 636 (Kagan, J., dissenting) (arguing that the majority had extended *Nollan/Dolan* to monetary demands even though the district “never demanded anything” in exchange for the permit).

²³⁸ *Sheetz v. Cnty. of El Dorado*, 601 U.S. 267, 271-72, 276-80 (2024).

²³⁹ Note, however, that the question presented was quite limited. See *id.* at 280-81 (Sotomayor, J., concurring).

invalidate rent control ordinances.²⁴⁰ *Sheetz*'s novel move was its extension to legislative fees, requiring further production of “nexus studies” to prove the connection between fees and project impacts.

Some conditions imposed on development projects potentially raise doctrinal questions. The most common form of conditions, circulation conditions, likely mostly evade serious scrutiny under Takings Clause analysis, as the nexus is quite tight; new developments inevitably introduce new congestion, and conditions designed to mitigate that congestion are closely linked to the approval of new development.²⁴¹ The next most common conditions are design and aesthetic requirements. These may impose significant costs on projects, yet it is unclear whether they qualify as exactions of *property* in the same way an easement—or, under *Koontz*, a monetary concession—does. Design restrictions would still generally appear to fall under the category of use restrictions rather than exactions and thus be subject to the more equitable *Penn Central* balancing test where success on the merits is unlikely.²⁴²

The two types of conditions likely to draw most scrutiny (and need for clever nexus studies) are affordable housing fees and adjudicatively imposed community benefit demands. The first category, affordable housing fees, was previously protected as legislatively imposed, but now is open to renewed scrutiny post-*Sheetz*.²⁴³ Affordable housing fees can be significant, are indisputable monetary exactions under *Koontz*, and are typically more calibrated to the city's affordable housing funding gap than to the new development's marginal impact on affordable housing demand.²⁴⁴ While the exact fate of each fee would depend on the nexus study's success in

²⁴⁰ Whitney Prout, *CAA Takes Fight over Rent Control to Massachusetts High Court*, CAL. APARTMENTS ASS'N (Apr. 21, 2026), <https://caanet.org/caa-takes-fight-over-rent-control-to-massachusetts-high-court/>.

²⁴¹ *But cf.* *Sheetz v. County of El Dorado (Sheetz II)*, 335 Cal. Rptr. 3d 316, 337-52 (Cal. Ct. App. 2025) (upholding the county's fee on remand after concluding the traffic studies supported nexus).

²⁴² *See* *Lingle v. Chevron*, 544 U.S. at 538-39, 546-48 (U.S. 2005); *Penn Cent. Transp. Co. v. City of New York*, 438 U.S. 104, 124 (1978). Success is improbable because it's hard to say that design restrictions destroy all economic use. Rather, aesthetic regulation seems more like the kind of “public program adjusting the benefits and burdens of economic life” Justice Brennan was sheltering. *Id.* Aesthetic and design regulations also rest on a long-recognized land-use interest. *See* *Berman v. Parker*, 348 U.S. 26, 33 (1954). *Vill. of Belle Terre*, 416 U.S. at 9. *But see* Nimrita K. Singh, *The Right Thing in the Wrong Place? Unstable Dicta and Aesthetics' Gradual Incursion Into the Traditional Police Power Justifications*, 111 VA. L. REV. 905 (2025) (questioning the doctrinal foundation for aesthetics as an independent police-power justification). *Cf.* Matthew H. Winesett, *A Taking by Another Name: Challenging Historic Preservation After Cedar Point*, 57 COLUM. J.L. & SOC. PROBS. 345, 382-88 (2024) (arguing that some historic preservation restrictions may be vulnerable under *Cedar Point*'s physical-appropriation framework).

²⁴³ Such fees are also typically imposed in lieu of property deed restrictions, which formally constitute a transfer of a “property interest” to the government.

²⁴⁴ Affordable housing nexus studies generally calculate impact through a multi-step chain connecting new construction to induced employment and then to estimated affordable-housing demand. Structurally, the fee equals units multiplied by the per-unit subsidy gap, divided by project size. Several features of that method sit uneasily with *Sheetz*: the subsidy gap is a cost-side figure that rises with land and construction costs even when the impact chain is unchanged; the chain itself depends on speculative inputs that compound uncertainty; and adopted fees are often set far below the calculated maximum after a separate feasibility analysis. The last step suggests that nexus arithmetic often functions more as a ceiling for politically feasible fees, producing large cross-jurisdictional variation. *See* TERNER CTR. FOR HOUS. INNOVATION, IMPROVING IMPACT FEES IN CALIFORNIA: RETHINKING THE NEXUS STUDY REQUIREMENT 3, 7-8 (Nov. 2020), https://turnercenter.berkeley.edu/wp-content/uploads/2020/12/Nexus_Studies_November_2020.pdf

clearly tying the amount of fees imposed on the project to that project's marginal impact, such fees are theoretically newly vulnerable under recent doctrinal changes.

Community benefits packages raise even sharper concerns.²⁴⁵ A striking example comes from Rialto, where the council rezoned land to allow a 470,000-square-foot warehouse despite denial recommendations from planning staff. The council approved the project after the applicant offered a \$13 million community benefit at the dais.²⁴⁶ Nearly all of the package consisted of off-site payments to third parties, like \$5M to the Rialto Unified School District to build a new charter high school, \$2.5M to the Rialto Police Department for new station construction, and \$1M to the National Latina Business Women Association. San Francisco's 5M project at 925 Mission Street shows a parallel pattern in a different posture. There, staff recommended approval, and the Board of Supervisors finalized a development agreement imposing roughly \$42 million in new off-site and third-party conditions, including affordable-housing funds for separate parcels, park-shadow mitigation, and \$800,000 (raised from \$300,000 by floor amendment) for the Filipino Cultural Heritage District.²⁴⁷

Note that many community benefit agreements should remain outside the exactions inquiry. Under a "voluntariness" theory, they are treated instead as bargained-for contracts.²⁴⁸ Yet it is not obvious that all of the conditions imposed on projects in the city council corpus arrived as part of a formal development agreement.²⁴⁹ Moreover, many of these development agreements—especially those with council-imposed amendments in the middle of heated approval hearings—may push the boundaries of what "voluntariness" requires.²⁵⁰ In Rialto, the \$13 million package

(noting wide methodological variation in nexus studies and recommending feasibility analysis and closer calibration to incremental costs).

²⁴⁵ See Vicki Been, *Community Benefit Agreements: A New Local Government Tool or Another Variation on the Exactions Theme?*, 77 U. CHI. L. REV. 5 (2010).

²⁴⁶ City of Rialto, City Council Meeting (Apr. 25, 2023) (one councilmember noting that their motion was contingent on the developer "com[ing] back with an approved form of community benefits"); City of Rialto, City Council Meeting (June 13, 2023) (a dissenting councilmember objecting that the package was "blood money" and that the city had "been bought").

²⁴⁷ See City and County of San Francisco, Board of Supervisors Meeting (Nov. 17, 2015); Development Agreement Between the City and County of San Francisco and 5M Project (Dec. 17, 2015), https://default.sfplanning.org/devagreements/5M_Development_Agreement-12-17-2015.pdf. Off-site payments to non-victim third parties have drawn analogous criticism in other settings. The Department of Justice's practice of including third-party donations in settlement agreements was prohibited by regulation in 2020, see 28 C.F.R. § 50.28 (2020), rescinded in 2022. Class-action cy pres awards have attracted a parallel critique. See Martin H. Redish, Peter Julian & Samantha Zyontz, *Cy Pres Relief and the Pathologies of the Modern Class Action*, 62 FLA. L. REV. 617 (2010).

²⁴⁸ See *Santa Margarita Area Residents Together v. SLO County*, 84 Cal. App. 4th 221 (2000) (upheld DAs as a valid exercise of police power, framed as contracts); *Leroy Land Development v. Tahoe Regional Planning Agency*, 939 F.2d 696 (9th Cir. 1991) (*Nollan* inapplicable to conditions accepted in a voluntary settlement).

²⁴⁹ See, e.g., City of San Jose, City Council Meeting (June 29, 2021) (approving the Berryessa Flea Market rezoning with an escalated vendor-transition fund with no development agreement).

²⁵⁰ To be sure, ordinary contract principles would hold that such bargains are still far from "duress." See Restatement (Second) of Contracts §§ 175–76; David L. Callies & Julia A. Tappendorf, *Unconstitutional Land Development Conditions and The Development Agreement Solution*, 51 CASE W. RES. L. REV. 663 (2001) (canonical view that development agreements create a safe harbor for the voluntariness inquiry). But the exactions doctrine has developed precisely under the premise that government leverage in rationing benefits seems to raise different issues of power than in a typical contractual agreement. The insulation of

materialized only after staff and the Planning Commission had recommended denial, and entered the record mid-hearing as the explicit pivot for the swing vote. There was no underlying development agreement, no vested rights flowing back to the applicant, and no temporal separation between the proffer and the approval it secured. Under *Koontz*, an “offer” structured this way—accepted at the price of avoiding an otherwise likely denial—begins to look less like a contract and more like the extortionate demand the unconstitutional conditions doctrine is designed to reach. Even in San Francisco, where there was a negotiated development agreement, the Board appeared to enlarge conditions at the last moment of approval. Condition-setting contemporaneous with the discretionary vote—and unilateral by the government—starts to look a bit like the leverage structure *Nollan*, *Dolan*, and now *Sheetz* target.

Thus far, this section has taken takings law as it stands, and on its own terms the doctrine has a defensible core. Rialto-style demands—individualized, adjudicative, contemporaneous with a discretionary vote—start to look like the leverage structure *Nollan* and *Dolan* were built to police, even according to the doctrine’s sharpest critics.²⁵¹ Yet even with its defensible core, takings litigation is a poor instrument for taming participation-driven conditioning for several reasons. First, its enforcement structures likely do not match the political and economic incentives of development. Developers who hope to be repeat players before the same council are unlikely to judge a courtroom win worth the political cost of suing the city; indeed, the canonical exactions plaintiffs have been more one-shot landowners.²⁵² The doctrine therefore binds mainly through anticipatory compliance, and the compliance it elicits is the nexus study—the consultant-prepared analysis meant to justify a fee’s connection to a project’s impacts—a document of dubious analytical value and real cost to cities.²⁵³ Second, it encourages the further development of a doctrine that has already exceeded its constitutional footing, as eloquently argued by Lee Anne Fennell and Timothy Mulvaney.²⁵⁴ In their account, the Court has turned a nuanced inquiry seeking to combat individualized government pressure where physical threats to exclusion were at stake into a searching test applied in a vast array of situations, irrespective of whether a constitutional right is actually at stake.²⁵⁵ Third, it places the courts in the position of gatekeeping new development, a legislative task which strains against their institutional competence and also a task

rezoning conditions has traditionally rested on an explicit voluntariness rationale. *See, e.g.* *Chrismon v. Guilford County*, 322 N.C. 611 (1988) (distinguishing permissible “conditional use zoning” where the owner proposes the conditions from impermissible “contract zoning”). But in some states, this line seems to be eroding. For example, in 2016, Virginia reformed its legislation to restrict localities from requesting or accepting landowner proffers that were not specifically attributable to the project, enacted on the premise that nominally voluntary proffers were functionally demanded. Va. Code § 15.2-2303.4. The state’s Supreme Court recently held that even a formally voluntary cash proffer attached to a legislative rezoning is subject to the unconstitutional conditions doctrine. *Board of Supervisors of Albemarle County v. Route 29, LLC*, 301 Va. 134, 146-50 (2022).

²⁵¹ Lee Anne Fennell & Timothy M. Mulvaney, *The Exactions Illusion: Sheetz’s Missing Dissent*, 135 *YALE L.J.* 1143 (2025).

²⁵² *See, e.g.* *Sheetz*, 601 U.S. at 270-72 (2024) (describing the individual plaintiff trying to build a single-family manufactured home).

²⁵³ *See* Daniel E. Ho et al., *The Abundance of Reports and Incapacity of States*, *YALE J. REG.* (2026, forthcoming).

²⁵⁴ Fennell & Mulvaney, *supra* note 251 at 1170-93.

²⁵⁵ *Id.* at 1188-89 (“Property, on its own, is not a [constitutional] right ... [the right] attaches only to ‘taken’ property.”)

which demands a swiftness and efficiency that the courts cannot deliver. Fourth, for some types of development with clearer negative externalities on communities, enabling some degree of bargaining would seem to be efficient in a Coasian sense; governments should be selective about when they proscribe such bargaining.²⁵⁶

To be clear, this is not to excuse cities' practice of leveraging new development to address fiscal gaps. Development exactions should not be used to do the work of taxation while evading the political and doctrinal discipline normally associated with taxation. Public economics makes clear that raising revenue is costly because taxes change behavior, and the design question is how to raise a given amount of money while minimizing those distortions.²⁵⁷ The same basic principle underlies the modern optimal-tax literature's emphasis on using broad, general tax instruments to pursue revenue and distributional goals rather than layering selective charges onto particular goods or transactions, let alone individual firms. Development fees tax the production of new housing, often at the margin where projects are barely feasible, rather than the broader base of residents, landowners, and firms that benefit from the public goods being funded. The result is a fiscal instrument that is both inefficient and politically evasive. It raises the cost of new supply, discourages marginal projects, and shifts the burden of general public goods onto future residents and the developers who must obtain discretionary permission to build.²⁵⁸ In other words, putting so much of the fiscal burden on new developers is simply bad economics and bad governance. But attempting to regulate that process through the Constitution is worse.

2. *Voice vs. Veto*

Public participation can have particular legal significance in land-use bargaining by transforming hearings into records for future litigation. The chief concern has been environmental review statutes, which create multiple opportunities to convert procedural defects into lawsuits. At the federal level, this concern centers on NEPA, the procedural framework governing

²⁵⁶ A compelling category of development for Coasian bargaining is developments like windfarms with obvious negative externalities on nearby communities or properties. See Zane Kashner, *Building with Externalities: Local Governments and Wind Farms* 1-5, 42-43 (Jan. 2026, unpublished manuscript). Where courts block side payments between developers and cities, a city retains full discretion to deny any project with net-negative local effects, however large its external benefits. Developer payments are one of the few mechanisms that give weight to the interests of broader communities that might benefit from the project. The necessity of such bargaining may be less obvious, though, for new *housing* development, which in some cases would be expected to *raise* new home values (due to an amenity effect exceeding the supply effect), as has been documented in the construction of new Low-Income Housing Tax Credit projects. See Richard Voith et al., *Effects of Concentrated LIHTC Development on Surrounding House Prices*, 56 J. HOUSING. ECON. 101838 (2022) (finding that LIHTC developments generate positive price spillovers in surrounding neighborhoods).

²⁵⁷ See Peter A. Diamond & James A. Mirrlees, *Optimal Taxation and Public Production I: Production Efficiency*, 61 AM. ECON. REV. 8, 8-9, 24 (1971) (explaining that optimal taxation includes "no intermediate good taxes" where such taxes would prevent production efficiency).

²⁵⁸ This is not to say, of course, that project-level fees are indefensible when they require development to internalize infrastructure costs that it actually causes. See Vicki Been, *Impact Fees and Housing Affordability*, 8 CITYSCAPE 139, 143-45 (2005); Jan K. Brueckner, *Infrastructure Financing and Urban Development: The Economics of Impact Fees*, 66 J. PUB. ECON. 383 (1997); Kashner, *supra* note 256 (finding that policies permitting targeted payments to local governments for windfarm disamenities can increase welfare).

environmental review of major federal actions.²⁵⁹ Many states have “mini-NEPAs” that extend similar review to broader categories of projects.²⁶⁰ California’s CEQA is perhaps the most notable example. It appears to generate more litigation than NEPA—roughly 115 NEPA cases are filed each year nationally, compared with around 200 CEQA cases annually in California alone.²⁶¹

The exact role of such lawsuits in the broader building crisis is sharply contested. One side emphasizes that environmental lawsuits are rare relative to the universe of projects and therefore cannot be a primary bottleneck.²⁶² Critics respond that litigation matters less through direct invalidation than through its timing, uncertainty, and deterrent effect on marginal projects.²⁶³ Both sides have their merits: while environmental litigation is statistically rare compared to the volume of all proposed development, the threat of it likely increases uncertainty, costs, and delays for a variety of stakeholders, city approvers and project proponents alike.

Both NEPA and CEQA have been significantly curtailed recently in response to these concerns. At the federal level, retrenchment has come from both the courts and the executive. The D.C. Circuit held that CEQ never had authority to issue its government-wide NEPA regulations, the new administration rescinded them wholesale, the Supreme Court in *Seven County* narrowed the required scope of review and the judicial role in policing it, and agencies rewrote their NEPA procedures to match.²⁶⁴ In June 2025, California enacted a new CEQA exemption for qualifying infill housing projects.²⁶⁵ Whether either retrenchment was warranted turns on where

²⁵⁹ See 42 U.S.C. § 4332(2)(C) (requiring environmental-impact statements for “major Federal actions”).

²⁶⁰ See Greta Raser, *States as Laboratories: State Environmental Policy Acts Are Tools to Address Pressing Environmental Harms*, VT. L. REV. BLOG (Dec. 5, 2023), <https://lawreview.vermontlaw.edu/states-as-laboratories-state-environmental-policy-acts-are-tools-to-address-pressing-environmental-harms/> (noting that fifteen states and the District of Columbia have enacted state environmental policy acts, or “little-NEPAs,” and identifying those states).

²⁶¹ Compare John C. Ruple & Kayla M. Race, *Measuring the NEPA Litigation Burden: A Review of 1,499 Federal Court Cases*, 50 ENVTL. L. 479, 501 tbl.3 (2020) (reporting an annual average of 115 NEPA cases 2001-2013), with JANET SMITH-HEIMER & JESSICA HITCHCOCK, CEQA BY THE NUMBERS: MYTHS & FACTS 11–12 (2023), <https://rosefdn.org/wp-content/uploads/CEQA-By-the-Numbers-2023-5-5-23-Final.pdf> (finding that California averaged 192 CEQA lawsuits annually 2002-2021).

²⁶² See David E. Adelman, Sommer Engels, Andrew Mergen & Jamie Pleune, *Dispelling the Myths of Permitting Reform and Identifying Effective Pathways Forward*, 55 ENV’T L. REP. 10038, 10039, 10044–45 (2025); Smith-Heimer & Hitchcock, *supra* note 261.

²⁶³ See Brooks and Liscow, *supra* note 124 at 22-23; Jennifer Hernandez, *In the Name of the Environment Part III: CEQA, Housing, and the Rule of Law*, 26 CHAP. L. REV. 57, 58, 100, 147 (2022); Zambrano, *supra* note 122.

²⁶⁴ See *Marin Audubon Soc’y v. FAA*, 121 F.4th 902, 906-15 (D.C. Cir. 2024) (holding that NEPA authorizes CEQ only to advise the President and that its binding regulations were ultra vires); Exec. Order No. 14,154, 90 Fed. Reg. 8,353 (Jan. 20, 2025) (revoking the 1977 executive order on which CEQ’s claimed rulemaking authority rested); Removal of National Environmental Policy Act Implementing Regulations, 90 Fed. Reg. 10,610 (Feb. 25, 2025) (interim final rule rescinding all CEQ NEPA regulations); *Seven County*, 605 U.S. at 177-79; Harvard Law Sch. Env’t & Energy L. Program, *Agencies Significantly Narrowed NEPA Requirements, Changes Effective Immediately* (last updated Apr. 3, 2026), <https://eelp.law.harvard.edu/tracker/rollback-agencies-significantly-narrowed-nepa-requirements-changes-effective-immediately/>.

²⁶⁵ See Cal. Pub. Res. Code § 21080.66(a); see also Eric Biber, Christopher S. Elmendorf, Nicholas Marantz & Moira O’Neill, *Just Look at the Map: Bounding Environmental Review of Housing Development in California*, 54 ENV’T L. 221, 233–34 (2024) (arguing for geographically bounded limits on CEQA review of housing development in infill-priority areas).

environmental review does useful work. The case is strongest where environmental stakes are high and uncertain and the analysis feeds back into the decision, and weakest where impacts are bounded and predictable. The two reforms fall on opposite ends of that scale. *Seven County* and the rescission of CEQ's coordination regulations cut review across all major federal actions at once, pulling scrutiny from the high-impact, high-uncertainty actions where it does the most work. California's infill exemption targets the opposite category. Infill sits on already-developed, infrastructure-served land, which bounds its marginal environmental burden from the start.²⁶⁶ CEQA's no-build baseline also mismeasures that burden, since the realistic counterfactual to a blocked infill project is the same housing demand absorbed by fringe development, with higher per-unit driving and emissions.²⁶⁷ Review of infill is thus both least necessary and most distortive, which is what makes the exemption defensible. California's exemption is a well-aimed first step, though unblocking housing will require reforming the participatory and litigation channels it leaves standing.

3. *Preemption*

The reforms canvassed so far work within the local process: who participates, when, and to what litigable effect. Preemption operates differently by taking the project-by-project decision away from the local process altogether. It is also a mechanism for effectuating my earlier proposal to move the participatory aspects of the planning decision upstream.

My proposal is relatively straightforward: an urban project that satisfies objective zoning standards should proceed to a building permit without discretionary review or the hearings that

²⁶⁶ Biber et al., *supra* note 265 at 233-34.

²⁶⁷ *Id.* at 287.

attach to it.²⁶⁸ In other words, nearly all infill housing should be buildable by right.²⁶⁹ By-right approval is the best instrument because it removes the precise stage at which participation's costs concentrate. The delay, the conditioning, and the litigation-readiness documented earlier are products of project-by-project discretionary review.

State preemption to achieve this is theoretically appropriate because the consequences of local land-use choices have outgrown the boundary within which they are made. Zoning began as a tool for the local problem of controlling nuisances, like keeping the factory off the residential block. That is the rationale on which the Court upheld it in *Euclid*.²⁷⁰ And that allocation fits the fiscal-federalist principle that authority should rest with the government whose boundaries contain the relevant effects.²⁷¹ But housing restrictions in productive metros have now been shown to impose costs far beyond city borders. Modern agglomeration economics argues that limiting housing in high-productivity regions misallocates labor across the national economy, while each locality still has reason to under-build because the benefits of new housing spread regionally and the costs—schools, infrastructure, congestion, and political backlash—remain local.²⁷²

In many ways, the dense lattice of participation the localist tradition prizes is the machinery through which concentrated local opposition turns a free-riding incentive into a working obstacle.²⁷³ The result is a quintessential collective-action failure, and the appropriate cure is an

²⁶⁸ One objection is that by-right approval only matters where the underlying zoning already permits enough housing. But that objection shows that by-right approval and upzoning are complements, not substitutes. States and cities have already begun expanding the zoning envelope in major housing markets. *See, e.g.*, Cal. Gov't Code § 65912.157(a) (i.e., SB 79, which made qualifying housing developments an "allowed use" near transit); Mass. Gen. Laws ch. 40A, § 3A(a)(1) (requiring MBTA communities to create at least one district of reasonable size in which multifamily housing is permitted "as of right"); S.F. Planning, *S.F. Family Zoning Plan & Rezoning Capacity Calculations* 1–2 (2025), <https://sfplanning.org/sites/default/files/documents/citywide/FZP-Factsheet-Capacity-Calculations.pdf> (stating that San Francisco's Family Zoning Plan was calibrated to create realistic capacity for 36,200 new units); L.A. City Planning, *Citywide Housing Incentive Program (CHIP) Ordinance 2* (updated Oct. 17, 2024), https://planning.lacity.gov/odocument/a38fe378-2c4b-4260-807e-af66a053a95b/FD_CHIP_Fact_Sheet.pdf (stating that Los Angeles identified a need to update zoning regulations to allow 255,433 additional units); L.A. City Planning, *Housing Element Rezoning Program Takes Effect February 11, 2025* (Feb. 11, 2025), <https://planning.lacity.gov/plans-policies/community-plan-update/housing-element-rezoning-program-news/housing-element-0> (describing adoption and effective date of implementing ordinances). And because zoned capacity converts into actual housing only gradually, removing discretionary approval remains important even after rezoning. *See* Leah Brooks & Jenny Schuetz, *Does Housing Growth in Washington, D.C., Reflect Land Use Policy Changes?*, 25 CITYSCAPE 203, 204–06 (2023) (finding that most 2000–2020 D.C. housing growth was not tied to large-scale neighborhood rezonings); Vincent Rollet, *Zoning and the Dynamics of Urban Redevelopment* 4, 30 (Oct. 2025) (unpublished manuscript), https://vrollet.github.io/files/city_structure.pdf (estimating that an ambitious New York City upzoning would produce little effects on construction within ten years).

²⁶⁹ Localities might retain discretion for very large buildings. For example, California's most recent CEQA exemption only exempts projects from labor conditions up until 85 feet, but this seems like more of a labor negotiation than a clear safety benefit. *See* Cal. Pub. Res. Code § 21080.66.

²⁷⁰ *Village of Euclid v. Ambler Realty Co.*, 272 U.S. 365, 387–88 (1926).

²⁷¹ *See* Wallace E. Oates, *An Essay on Fiscal Federalism*, 37 J. ECON. LIT. 1120, 1130–31 (1999).

²⁷² *See* David Schleicher, *Stuck! The Law and Economics of Residential Stagnation*, 127 YALE L.J. 78, 84–86, 95–103, 114–17 (2017); Peter Ganong & Daniel Shoag, *Why Has Regional Income Convergence in the U.S. Declined?*, 102 J. URB. ECON. 76, 76–77 (2017).

²⁷³ *See* MANCUR OLSON, JR., *THE LOGIC OF COLLECTIVE ACTION: PUBLIC GOODS AND THE THEORY OF GROUPS* 2–3 (1965); Richard Briffault, *Localism and Regionalism*, 48 BUFF. L. REV. 1 (2000). *Cf.* Tiebout,

authority that can bind every jurisdiction at once.²⁷⁴ The claim that the regional consequences of local exclusion belong to a larger unit is, of course, not new. New Jersey's *Mount Laurel* line of cases held that the zoning power carries an affirmative obligation to provide a realistic opportunity for the municipality's fair share of regional housing need.²⁷⁵ Massachusetts, as another example, created remedies for housing developers through its anti-snob zoning laws under a similar logic.²⁷⁶

Preemption still makes local government scholars nervous, with the recent wave of state preemption being perceived as sweeping, punitive, and highly politically motivated.²⁷⁷ But housing preemption differs from the "new preemption" Richard Briffault criticizes. Laws barring municipal minimum-wage, paid-leave, firearm, and sanctuary ordinances often void local action without replacing it with a state scheme. California's housing laws do the opposite. They install a substantive state regime in place of local discretion, centered on regional housing targets allocated jurisdiction by jurisdiction and on mandatory, state-reviewed local housing plans. They are *re-regulatory* rather than merely deregulatory. In Chris Elmendorf's terms, this form of preemption is more like an "intergovernmental compact."²⁷⁸

California has made fragmentary preemption moves through over 100 state laws aimed at reducing barriers to housing development since 2017.²⁷⁹ Accessory dwelling units are now ministerial by default; SB 9 made duplexes and lot splits by-right on single-family parcels; SB 35 opened a streamlined ministerial path for multifamily affordable infill in jurisdictions that miss their housing target.²⁸⁰ Yet preemption has arrived parcel type by parcel type and program by program, and often bundled with conditions heavy enough to blunt it.²⁸¹

supra note 59 (developing a local-sorting model premised on assumptions including mobility, information, many communities, no employment constraints, and no interjurisdictional spillovers).

²⁷⁴ Note that this is, after all, why we do not regulate pollution town by town. Most groundwater contamination, like most of a new building's effects, is felt locally. Yet we centralize its regulation anyway, predominantly between the federal and state governments. The matching principle I invoked above was in fact developed for exactly the structure of environmental spillover. See Henry N. Butler & Jonathan R. Macey, *Externalities and the Matching Principle: The Case for Reallocating Environmental Regulatory Authority*, 14 YALE L. & POL'Y REV. 23 (1996); John Infranca, *The New State Zoning: Land Use Preemption Amid a Housing Crisis*, 60 B.C. L. REV. 823, 824-26 (2019).

²⁷⁵ See *S. Burlington Cnty. N.A.A.C.P. v. Twp. of Mount Laurel* (Mount Laurel I), 67 N.J. 151, 174, 187-90 (1975); *S. Burlington Cnty. N.A.A.C.P. v. Twp. of Mount Laurel* (Mount Laurel II), 92 N.J. 158, 214-22 (1983).

²⁷⁶ See Mass. Gen. Laws ch. 40B, §§ 20-23.

²⁷⁷ Richard Briffault, *The Challenge of the New Preemption*, 70 STAN. L. REV. 1995, 1999-2002 (2018).

²⁷⁸ Christopher S. Elmendorf, *Beyond the Double Veto: Housing Plans as Preemptive Intergovernmental Compacts*, 71 HASTINGS L.J. 79, 82-85 (2019).

²⁷⁹ BILL FULTON, DAVID GARCIA, BEN METCALF, CAROLINA REID & TRUMAN BRASLAW, TERNER CTR. FOR HOUS. INNOVATION, NEW PATHWAYS TO ENCOURAGE HOUSING PRODUCTION: A REVIEW OF CALIFORNIA'S RECENT HOUSING LEGISLATION 1, 16-23 app. A (Apr. 2023), <https://turnercenter.berkeley.edu/wp-content/uploads/2023/04/New-Pathways-to-Encourage-Housing-Production-Evaluating-Californias-Recent-Housing-Legislation-April-2023-Final-1.pdf>.

²⁸⁰ See *id.* at 6-8.

²⁸¹ Note that this generalization is somewhat distinct from Elmendorf's 2019 proposal. He is wary of complete preemption, but the costs I document concentrate at the project-by-project discretionary stage itself. Elmendorf, *supra* note 278.

Evidence on the efficacy of by-right reforms is difficult, especially in California, where the reforms arrived in a torrent, which makes it challenging to causally attribute any project's fate to any one of them, and the most consequential reforms have only months of post-enactment data behind them. However, the reforms offer some evidence. For example, take-up of SB 35's ministerial pathway to development was low. Only 11 percent of plausibly eligible projects and 15 percent of plausibly eligible units invoked it.²⁸² Yet the projects that did invoke it were approved far faster than comparable conventional applications.²⁸³ Studying Los Angeles's transit-oriented program, which let many large projects proceed by-right, Manville and coauthors found by-right approvals roughly 28% faster than discretionary ones, with markedly less variance.²⁸⁴ At the smaller end, the surge in accessory dwelling units after the state made them ministerial, from 8,000 to 35,000 units permitted a year, provides a suggestive sign of how much a removed discretionary gate can unlock.²⁸⁵

California's experiments also offer some design lessons. The first is the cost of bundling. SB 35 paired its streamlined approval with a prevailing-wage requirement, and in California, prevailing wage raises per-unit costs by more than 20%. The likely result is that streamlining drew in few projects not already committed to those wages. At least 39 percent of the projects that used SB 35 appeared to be supported by government programs already carrying a prevailing-wage mandate. SB 35 thus may have worked on the intensive margin, speeding projects already in the pipeline, while doing little on the extensive margin.

The second lesson is that preemption only works if it is enforced.²⁸⁶ California's enforcement regime has divided the labor after many years of complaints about under-enforcement.²⁸⁷ The agency charged with pre-litigation enforcement, the Department of Housing and Community Development (HCD), operates at volume. Its Housing Accountability Unit sent 454 technical assistance and enforcement letters to 312 jurisdictions in 2025, and well over 1,000 since its creation in 2021.²⁸⁸ But HCD is constrained by capacity and process. The division that reviews

²⁸² Martin, *supra* note 179.

²⁸³ Developers of course selectively invoke SB 35. The empirical paper addresses this selection through covariate adjustment and matched comparisons, which substantially attenuate the speed gap.

²⁸⁴ Michael Manville, Paavo Monkkonen, Nolan Gray & Shane Phillips, *Does Discretion Delay Development? The Impact of Approval Pathways on Multifamily Housing's Time to Permit*, 89 J. AM. PLAN. ASS'N 336, 336, 343–44 (2023).

²⁸⁵ Martin, *supra* note 179; Nicholas J. Marantz, Christopher S. Elmendorf & Youjin B. Kim, *Where Will Accessory Dwelling Units Sprout Up When a State Lets Them Grow? Evidence from California*, 25 CITYSCAPE 107, 108 (2023).

²⁸⁶ See, e.g., Christopher S. Elmendorf, Eric Biber, Paavo Monkkonen & Moira O'Neill, *Making It Work: Legal Foundations for Administrative Reform of California's Housing Framework*, 47 ECOLOGY L. Q. 973, 996–99 (2020).

²⁸⁷ See Ben Metcalf, Managing Dir., Turner Ctr. for Hous. Innovation, *Testimony Before the Little Hoover Commission: Hearing on the State's Response to California's Housing Crisis* 4–5 (Sept. 23, 2021), <https://turnercenter.berkeley.edu/wp-content/uploads/2021/10/Little-Hoover-Hearing-Sept-23-2021-Metcalf-Testimony.pdf> (describing HCD's prior compliance-monitoring efforts as often ad hoc, observing that the state had brought only one enforcement action during the preceding decade, and explaining that HCD relied heavily on third parties to identify violations).

²⁸⁸ Author's calculations from Technical Assistance and Enforcement Letters Dashboard, Cal. Dep't of Hous. & Cmty. Dev., <https://www.hcd.ca.gov/hau/enforcement-letters> (last visited July 15, 2026) (filtering

local housing plans is structurally separate from the one that pursues violations, and little of HCD's enforcement is focused on project-level violations.²⁸⁹ Project-level enforcement appears to fall instead to philanthropically funded nonprofits like the California Housing Defense Fund (CalHDF), which monitors jurisdictions through an AI tool, files written comments to preserve administrative remedies, and litigates a handful of cases a year with a staff of two attorneys.²⁹⁰ In 2025, CalHDF sent 583 letters, two-thirds of which invoked the Housing Accountability Act on behalf of specific projects, and a quarter pressed cities to conform local ordinances to new state ADU law.²⁹¹ Of 50 cities CalHDF challenged on noncompliant ADU ordinances in the first half of 2025, 24 amended them in response.²⁹²

Where full by-right is politically out of reach, a partial version can do some of the same work. Pre-approved plan sets are designed by a jurisdiction in advance; a builder who adopts one skips most project-level review, which compresses the timeline without removing discretion wholesale. The state would have to impose restrictions on how much these pre-approved plans can vary and set strict deadlines for their provision (likely as part of the current housing element plan). Pre-approved plans could help even under a by-right regime by lowering barriers to entry for smaller builders who cannot carry a long entitlement.

Conclusion

Local participation in land use decisions sits at the center of an increasingly urgent question: how can government remain open to those it governs and still build? Participation allows residents to express their preferences, places officials in public view, and sometimes transmits concrete information that thinly staffed local governments would otherwise miss. Yet those values are poorly served by concentrating the thickest participatory process at the point where one project, one parcel, and one applicant have already become the object of organized opposition. The novel transcript evidence this Article has marshaled shows the mismatch. Public comment is scarce, skewed, and only thinly consumed by decisionmakers; outright project denial is rare, but participation still matters through delay, conditioning, and the record for litigation.

Local participation should be strongest where government chooses the rules that will govern whole classes of projects. At that stage, cities should invest more in representativeness, information quality, and structured deliberation. Once those rules have been set, compliant projects should move through ministerial channels, with resident input reserved for defined factual questions and

letter dates to January 1 through December 31, 2025, and counting 454 letters sent to 312 unique jurisdictions).

²⁸⁹ Author's calculations from CalHDF's public letter postings and HCD's Technical Assistance and Enforcement Letters Dashboard, <https://www.hcd.ca.gov/hau/enforcement-letters>.

²⁹⁰ Interview with Dylan Casey, Exec. Dir., Cal. Hous. Def. Fund (Jan. 2026) (notes on file with author); *Mission and Staff*, CAL. HOUS. DEF. FUND, <https://calhdf.org/about-us/>.

²⁹¹ Author's calculations from 583 enforcement letters sent by the California Housing Defense Fund in 2025 (letters and coding on file with author).

²⁹² James M. Lloyd, *CalHDF Midyear Enforcement Report*, CAL. HOUS. DEF. FUND (July 28, 2025), <https://calhdf.org/calhdf-midyear-enforcement-report/>.

post-entitlement implementation issues such as construction management, access, and safety. That design preserves voices while stripping away (some) of the veto.

Legal reform also has a natural limit. Most housing projects are for-profit. And a project only pencils when expected income can cover the required return on the full costs of production such as hard costs, soft costs, land, and the time and uncertainty that scale each of these components. Participatory structures directly affect time and uncertainty through delay, risk, fees, litigation exposure, and the scarcity value of buildable land. They have less direct effects on other key elements, like labor, materials, interest rates, macroeconomic cycles, construction technology, and investor risk tolerance. Future work should measure each of these terms with more care, identify which margins actually bind in different markets, and discipline the ambition of legal reform by the size of the housing-supply effects those reforms can plausibly produce.

The broader lesson is that procedure should be designed around what it is for. Local participation has too often been treated as a general-purpose good, appended to decisions because openness feels democratically safe. The evidence here suggests a more demanding view. Participation is valuable when it provides representative and pluralist viewpoints, surfaces novel information, enables accountability, and honors the dignity of being heard. It becomes costly when it converts diffuse public decisions into serial opportunities for project-specific leverage. A better participatory state would incorporate more deliberate and representative upstream democracy, fewer downstream veto points, and a legal architecture to let cities hear their residents without making housing depend on who has the time to show up.